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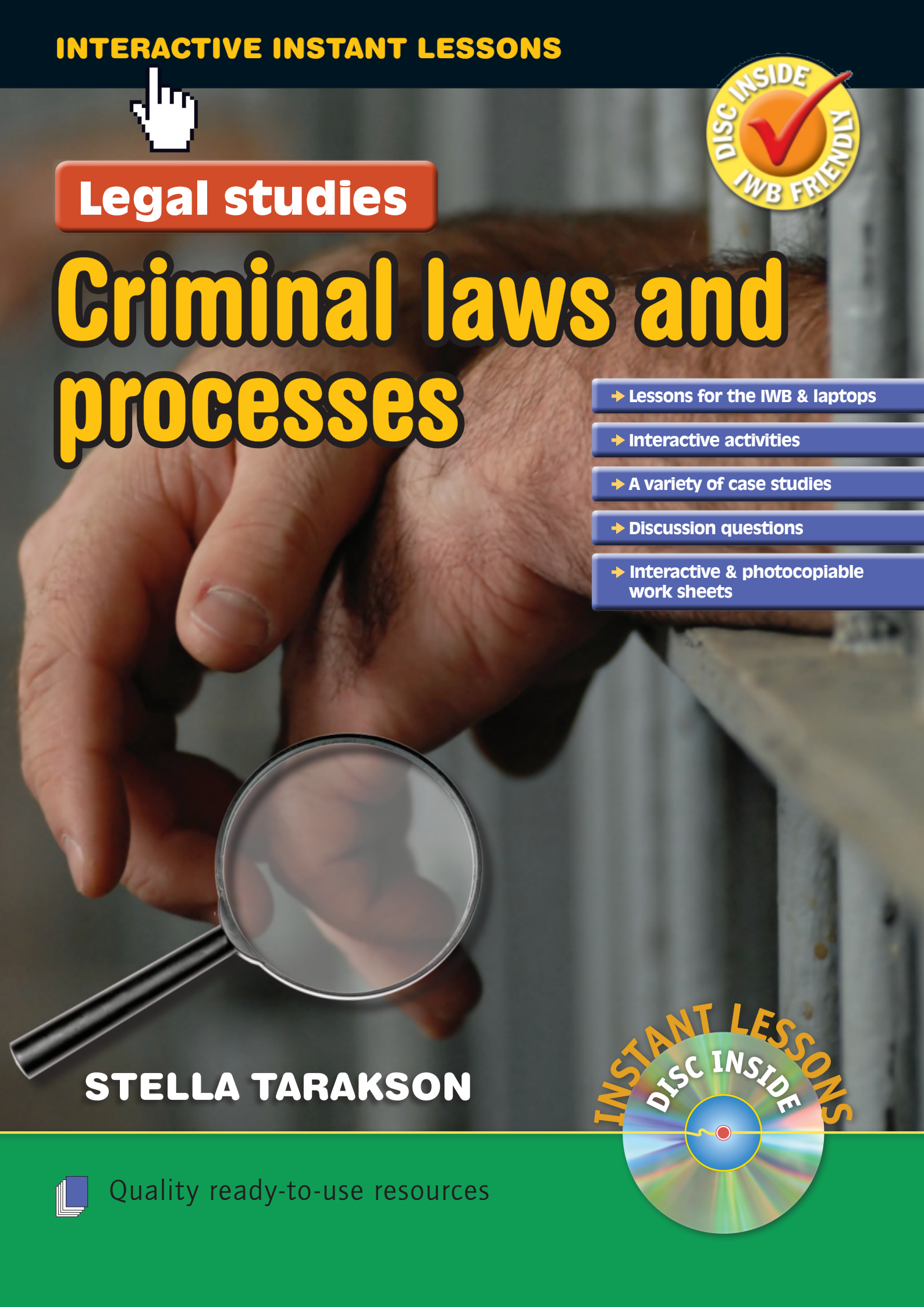

STELLA TARAKSON

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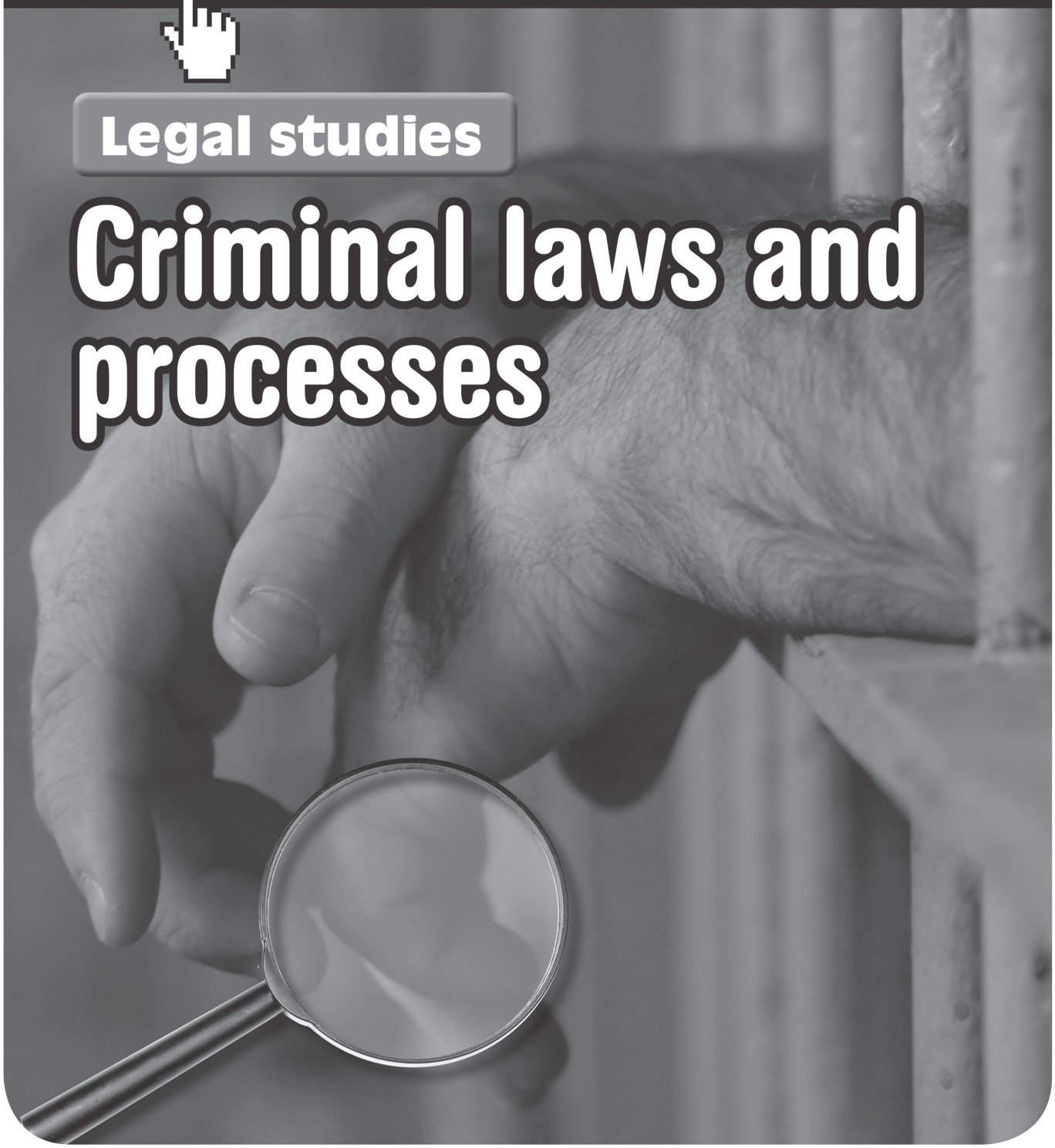

Legal studies

Criminal laws and processes

STELLA TARAKSON

This book was commissioned by Lisa Tancredi
Editing and project management by Render Editorial Services
Typesetting by digiXL
Page design by Piper Print Media
Cover design by Polar Design

Stella Tarakson has degrees in Economics and Law from the University of Sydney. Now a full-time writer, she is the author of more than 20 books on the law, personal finance and social sciences. She has written for both adults and students, and currently specialises in educational material for primary and high school students. She is the author of *Legal Studies Casebook: Preliminary Course* and *Legal Studies Casebook: HSC Course*.

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ISBN 978 1 92571 051 9

Introduction

The *Interactive Instant Lessons – Legal studies* series is designed to assist students of Legal studies in years 11 and 12. It consists of three titles: *The Australian legal system*, *Criminal laws and processes* and *Civil laws and processes*. Students are engaged through high-interest fictional scenarios and real-life cases and events that put learning in context and bring the law to life. The series is an ideal supplement to your existing resources, to introduce new topics or for revision and exam preparation.

This book contains work sheets to be photocopied and used as traditional handouts. The work sheets consolidate and extend the content from the onscreen presentations. Some work sheets require Internet access and are marked with a research icon for quick identification. The work sheets are also available in an interactive form on the CD-ROM for laptop classes. You'll find hints for making the best use of the work sheets in the quick-reference guides contained in the folder.

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1 What is a crime?

REMEMBER

A crime is an incident so serious it is considered a threat to society as a whole. Less serious offences are called summary offences. More serious offences are called indictable offences. Before an indictable offence can be heard by a higher court, committal proceedings are held before a magistrate.

1 **Explain the difference between summary and indictable offences. Give one example for each.**

2 **Explain why you think the law makes a distinction between summary and indictable offences.**

3 **Explain why you think an accused charged with an indictable offence might elect to be heard by a magistrate rather than a judge and jury.**

4 **Outline the purpose of committal proceedings.**

5 **Explain what happens if the committals magistrate concludes there is not enough evidence for the case to go before a higher court.**

6 a **In a criminal case citation, identify what the 'R' stands for.**

b **When a case is heard for the first time, identify which party is listed first in the case citation. Explain the reason why.**

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7 Complete the passage using the words from the word bank.

Word bank			
standard	high	insanity	alleged
presumption	guilty	acquitted	reasonable
prove	convicted	burden	

An important element of our criminal law is the _____ of innocence. Anybody accused of committing a crime is presumed innocent until proven _____. Assuming a person is guilty merely because they have been charged is dangerous, and this is why the term _____ is used during proceedings.

It is up to the prosecution to establish guilt; defendants do not need to _____ that they are innocent. In legal terms, this means that the _____ of proof is on the prosecution. Some defences, however, such as _____, require the defendant to prove the defence.

How convinced does the court need to be? In other words, what _____ of proof is required? Because the consequences of criminal charges are so serious, a very _____ standard is required. The court needs to be convinced beyond _____ doubt. If reasonable doubt exists, the defendant may be _____. If found guilty, the defendant is _____ of the crime.

8 Unscramble the crimes to fit the descriptions below.

sueab	redmru	adfru	dalvnasim
eftth	ssaluta	deepnisg	fingckifrat

a A person who steals a woman's handbag might be found guilty of _____.

b A person who falsifies documents in order to make a financial gain might be found guilty of _____.

c A person driving too fast might be found guilty of _____.

d A person who unlawfully and intentionally kills another might be found guilty of _____.

e A person who possesses a large quantity of illegal drugs might be found guilty of drug _____.

f A person who forces another to engage in unwanted sexual activity might be found guilty of sexual _____.

g A person who is deliberately physically aggressive towards a child might be found guilty of child _____.

h A person who deliberately and maliciously damages the property of another might be found guilty of _____.

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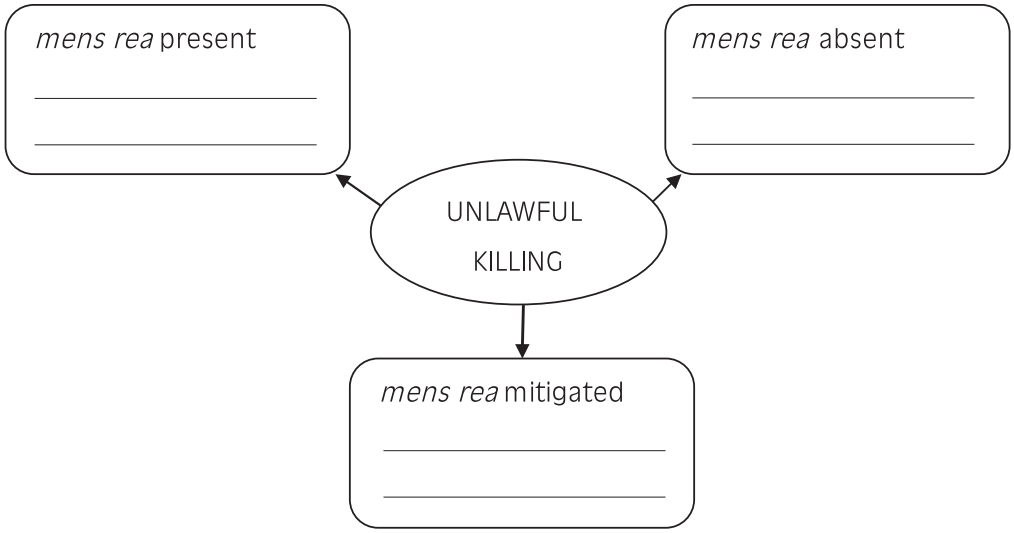
2 The mental element

REMEMBER

Most crimes are composed of three elements: the mental element, the physical element and causation. The mental element of a crime is the intent to commit the crime, called* mens rea. *Most crimes require intent.

1 Fill in the missing labels on the mind map, using the terms in the word bank.



Word bank

- **murder**
- **voluntary manslaughter**
- **involuntary manslaughter**

2 Has a crime been committed? Read the following case studies and answer the questions.

Case study: Ali

Ali leaves her handbag in a friend's bedroom during a party. As she is leaving, she picks up a bag that she thinks is hers and takes it away. The handbag, which is identical to hers, turns out to belong to someone else.

a Did Ali steal the bag? Explain the reasons for your answer.

Case study: Nathan

Nathan was a witness in a court trial. He had to give evidence against his best mate Blake, who was up on charges of assault. Nathan thought it was unfair, because the other guy started it. Nathan told a few white lies on the witness stand to help Blake out.

b Define perjury.

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c Was Nathan committing perjury? Explain the reasons for your answer.

Case study: Simon

Simon was driving home. He had not been drinking and he was driving carefully. However, it was dark and he failed to see an old lady step out in front of him. He stopped to help her and called an ambulance. The old lady was hospitalised but later died of her injuries.

d Did Simon commit either murder or manslaughter?

e Is Simon likely to be guilty of a driving offence such as culpable driving causing death? Explain the reasons for your answer.

Case study: Ricardo

Ricardo was driving home after a party. He was pulled over for random breath testing, and was found to be considerably over the limit. He was asked to show his licence. Ricardo fumbled clumsily in his wallet, and a fifty-dollar note accidentally fell onto the police officer's arm. The officer informed Ricardo that bribery was an offence.

f Define bribery.

g Was Ricardo guilty of attempted bribery? Explain the reasons for your answer.

Case study: Will

Will was sent overseas on a work trip. His employer was paying for his accommodation and would also reimburse meals. The food allowance was generous. Will decided to buy food from cheap street stalls, yet put in claims for expensive restaurant meals.

h Define fraud.

i Was Will committing fraud? Explain the reasons for your answer.

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3 The physical element

REMEMBER

Most crimes are composed of three elements: the mental element, the physical element and causation. The physical element is the performance of the wrongful act, called actus reus. Actus reus *may be an act or an omission, and it must have been voluntary.*

1 ***Actus reus*** **refers to:**

- **a the intention to commit a crime.**
- **b an involuntary act.**
- **c a wrongful act or omission.**
- **d a duty to act.**

2 **Which of the following may be an example of failing to act where a duty exists?**

- **a An ordinary member of the public not stopping at a road accident**
- **b A parent not seeking medical attention for their injured child**
- **c Someone not warning a friend that planking is dangerous**
- **d All of the above**

3 **Which of the following is the most likely to be an example of involuntary conduct?**

- **a Hurting someone while you are experiencing an epileptic seizure**
- **b Accidentally hitting someone while driving at night**
- **c Brawling while under the influence of drugs or alcohol**
- **d Acting under provocation**

4 **The law requires an act or omission to be voluntary because:**

- **a it is an element of *actus reus*.**
- **b it is an element of *mens rea*.**
- **c it would be unjust to hold someone liable for an action they had no control over.**
- **d it is required by statute.**

5 **Intoxication might not be considered voluntary where:**

- **a the person did not intend to get drunk.**
- **b the person did not realise they were over the legal limit.**
- **c the person thought they were drinking soft drink but it had been spiked.**
- **d All of the above**

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Case study: *R v Miller* [1983] 2 AC 161

Miller, who was homeless, had been out drinking and then returned to a house where he had been staying. He fell asleep with a lit cigarette in his hand. The cigarette started a small fire. Rather than putting it out, Miller went into another room and went back to sleep. The fire ended up causing extensive damage to the property. Miller was convicted of arson. The court ruled that the *actus reus* was not the starting of the fire, but Miller's omission to deal with the situation. Because he created the danger, he had a duty to call the fire brigade.

6 **Outline the difference between an act and an omission.**

7 **a** **Explain why the court decided that Miller had a duty to act.**

b **Outline the nature of Miller's duty.**

c **Do you think Miller's duty should have extended to taking steps to put out the fire? Explain the reasons for your answer.**

8 **a** **Was Miller's decision to not deal with the fire voluntary or involuntary?**

b **Create a possible scenario where it might have been the other way around.**

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4 Causation

REMEMBER

Most crimes are composed of three elements: the mental element, the physical element and causation. For a defendant to be liable, their act or omission must have caused the crime. Courts have used both factual causation tests and legal causation tests.

1 **Draw a line between each meaning and its definition.**

a factual causation	**The act or omission is an 'operative and substantial cause' of the outcome**
b legal causation	**The sequence of events leading to the outcome**
c chain of causation	**The outcome would not have happened *but for* the defendant's act or omission**

2 **Read the following real-life case studies and answer the questions below.**

Case study: *R v Blaue* [1975] 3 All ER 446

The defendant stabbed a woman several times, piercing her lung. She needed an operation and a blood transfusion. The victim was told she needed a blood transfusion or she would most likely die. She refused, however, as it was against her religion. She died and Blaue was convicted for her death.

a **Blaue argued that the woman's death was caused by her refusal to have a blood transfusion. Using the factual causation ('but for') test, is it likely that his argument would have succeeded? Explain the reasons for your answer.**

b **Now apply the legal causation test to the case. Is it likely that the woman's refusal to have a blood transfusion broke the chain of causation? Explain the reasons for your answer.**

c **In *R v Blaue* the court noted that offenders must take their victims as they find them, a principle known as the 'eggshell skull' rule. This rule means the defendant cannot complain if the victim is unusually weak or vulnerable (for instance, having a very thin skull that breaks easily). Discuss how the principle applies to this case.**

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Case study: *R v Hallet* [1969] SASR 141

Hallet and Whiting fought on a beach. Whiting was knocked unconscious and Hallet left him at the edge of the water. Hallet fell asleep further up the beach, and awoke to find Whiting floating dead in the sea. The tide had come in. Whiting's body showed signs of considerable violence, but his death was caused by drowning. The Supreme Court of South Australia convicted Hallet of murder.

d Hallet argued he was not liable because the sea caused the death. Using the factual causation ('but for') test, is it likely that his argument would have succeeded? Explain the reasons for your answer.

e The court stated that ordinary acts do not break the chain of causation, but that extraordinary acts might do so. Did the sea break the chain of causation in this case? Explain the reasons for your answer.

f Assume now that the fight took place in an empty building and Hallet left the unconscious victim lying on the floor. The victim dies, but not from injuries sustained from the fight. Identify two hypothetical extraordinary acts or events that might have broken the chain.

3 In your opinion, is the operation of the causation test fair or unfair? Give reasons for your answer, having regard to the two cases above.

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5 Defences

REMEMBER

If successful, a defence may lead to acquittal or conviction on a lesser charge. A complete defence is necessary for an acquittal. A partial defence can lessen the charges.

1 **Are the following defences complete or partial? Draw lines to match each defence with its classification.**

Defence	Classification
a insanity	complete
b diminished responsibility	
c automatism (no control over actions)	incomplete
d self-defence (where reasonable)	
e provocation	
f duress (genuine threat)	

2 **Why do you think it is important to consider the types of defences listed in Question 1?**

_____

_____

3 **Read the following fictional case studies and answer the questions below.**

Case study: Dave

Dave is a Vietnam War veteran. During the war he saw many of his mates killed, and on his return to Australia he suffered prolonged bouts of depression. He was treated for post traumatic stress disorder but never fully recovered. Dave's condition was steady for decades, then deteriorated rapidly. While on a hunting trip in the outback with some friends, he suddenly believed himself to be back in the war. Dave was terrified. He thought one of his friends was a Viet Cong guerrilla and shot him dead. The other members of the group reported that Dave was ranting and shouting and utterly confused. Dave was charged with murder.

a **Does Dave have a defence? Discuss.**

_____

_____

_____

_____

_____

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Case study: Shelley

Shelley was asleep in bed when a pounding at the door woke her. It was 2am and she was home alone. A few moments later she heard the stairs creaking, then a man burst into her bedroom. He grasped her roughly by the arms and tried to force himself upon her. Shelley struggled. He put his hands around her throat and started to squeeze. Shelley managed to roll away and grabbed the first thing she could find – a heavy vase. Using all her force, she brought it down on his head. The intruder slumped to the floor, his skull fractured. Shelley called the ambulance but the intruder died before it arrived.

b Does Shelley have a defence? Discuss.

c Explain how your answer would differ if the intruder had tried to retreat but Shelley kept hitting him until he collapsed.

4 In some states, provocation does not reduce murder to manslaughter. An example of provocation is when a woman rejects or taunts a man and he kills her. The defence has been criticised because it is gender-biased (mostly relied on by men) and promotes a 'blame-the-victim' culture. Do you agree with this criticism or do you think the defence should exist? Explain the reasons for your answer.

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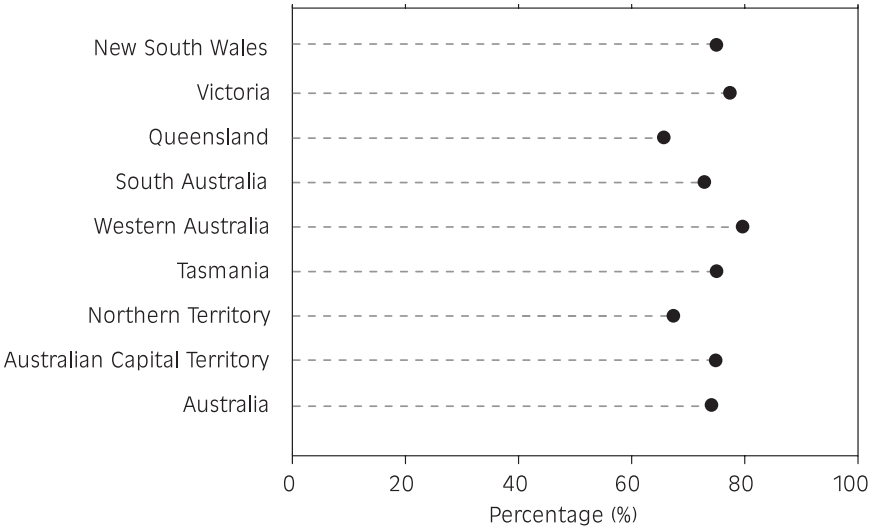
6 Police investigations

REMEMBER

Police are given broad powers to allow them to investigate crimes. They have powers to search people and property and to seize items that can be used as evidence.

Many crimes in Australia do not get investigated because they are not reported to the police. The following graphs analyse the reporting rates of various crimes. They have been reproduced from Australian Bureau of Statistics, 2005, *Crime and Safety Australia*, cat. no.4509.0, at http://www.ausstats.abs.gov.au/ausstats/subscriber.nsf/0/D68F78EDFB7965E4CA25715A001C9192/$File/45090_apr%202005.pdf.

Graph 1: Break-in reporting rates, 2005



1 **What is the range of reporting rates for break-ins?** _____

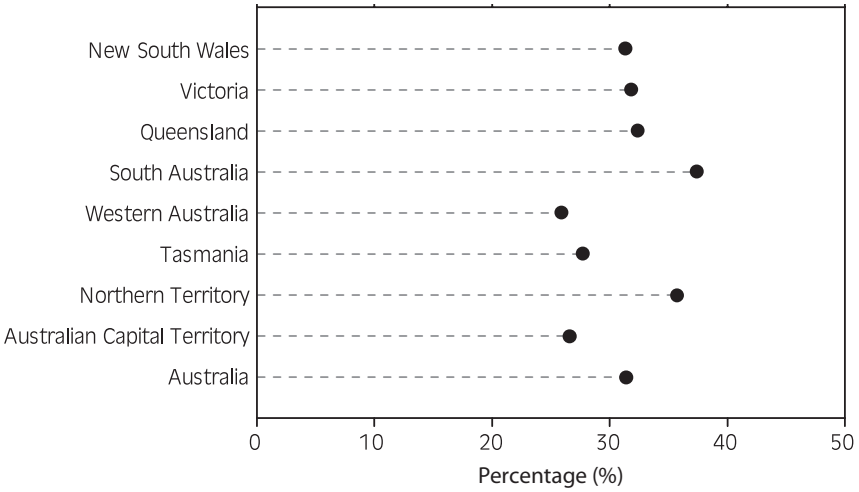
2 **Which state or territory had the highest reporting rate of break-ins in Australia?** _____

3 **Does that mean that this state had the highest number of break-ins? Explain the reasons for your answer.**

_____

_____

Graph 2: Assault reporting rates, 2005



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4 **What is the range of reporting for assaults?** _____

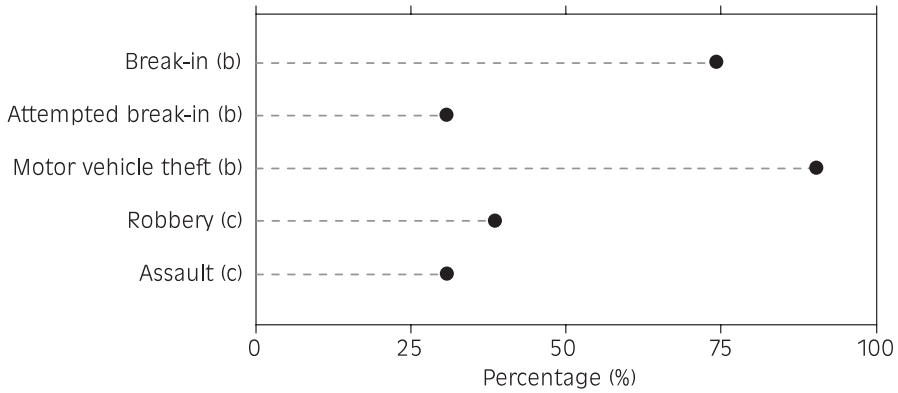
5 **Which state or territory had the lowest reporting rate of assaults in Australia?** _____

6 **Given the answer to Question 2, does the answer to Question 5 surprise you? Explain the reasons for your answer.**

_____

_____

Graph 3: General reporting rates (a), 2005



(a) Of household/person victims.
(b) Households.
(c) Persons aged 15 years and over.

7 **Identify the two types of crimes that have by far the highest reporting rates.**

_____

8 **Explain why these crimes have such high reporting rates.**

_____

_____

9 **Explain why the reporting rate is so low for attempted break-ins.**

_____

_____

10 **The reporting rates for assaults are relatively low. Outline three reasons that may exist for assault victims not reporting the crime.**

_____

_____

_____

_____

_____

_____

_____

_____

_____

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7 Under arrest

REMEMBER

A person suspected of committing a crime can be brought before the court by summons or arrest. After the accused has been charged, they can apply for bail.

1 **Which of the following statements is the most correct?**

- a **Summonses are commonly used for less serious offences, while arrests are for more serious offences.**
- b **Arrests are commonly used for less serious offences, while summonses are for more serious offences.**
- c **Arrests only take place if the suspect has failed to answer a summons.**
- d **Arrests only take place if the police have an arrest warrant.**

2 **If a person is asked to go to the police station to 'help with inquiries' but there is no indication of compulsion:**

- a **the person must go as he or she is under arrest.**
- b **the person should immediately call their lawyer.**
- c **the person has not been arrested at this stage and does not need to go.**
- d **Both a and b.**

3 **If a suspect tries to run away while being arrested:**

- a **the police can use reasonable force to carry out the arrest.**
- b **the police might charge the person with resisting arrest.**
- c **the police would need to get an arrest warrant.**
- d **Both a and b.**

4 **When being questioned by the police, a suspect should:**

- a **answer all questions truthfully.**
- b **refuse to answer any questions that might incriminate them.**
- c **refuse to answer all questions.**
- d **seek the advice of a solicitor before answering questions.**

5 **An 'off the record' conversation with the police:**

- a **means the suspect can talk freely and no record is kept of what is said.**
- b **means the matter will not be reported to the media.**
- c **does not exist because anything the suspect says can be used as evidence.**
- d **refers to the meeting with the suspect's solicitor.**

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6 **Read the following fictional case studies and decide in each case whether the suspect is likely to be granted bail. Explain the reasons for your answers.**

Case study: Liam

Liam is 18 years old. He believes graffiti is an art form and has been spraying buildings and fences since he was 12. The first time he was caught he received a caution, but this did not stop him. A few times he was ordered to remove the graffiti, and he received a couple of community service orders while still under 18. Now legally an adult, Liam has been caught again and has been charged.

Case study: Michael

Michael had been involved in housebreaking offences over the years but had never been caught, so he did not have a criminal record. He had no job and was always short of money. His friends convinced him to join them on an armed hold-up at a petrol station. Michael held a gun to a teenaged girl's head while his friends demanded money. Someone managed to call the police and the whole group was arrested and charged.

Case study: Liza

Liza had a violent husband and suffered years of domestic violence. She was too frightened to seek help. Liza did not work and was socially isolated. She and her husband had a two-year-old son. One day the boy accidentally tore some paperwork, and the husband was so furious he beat the boy. He broke the child's arm and showed no signs of stopping the attack. Liza feared for her son's life. Hysterical, she grabbed a kitchen knife and stabbed her husband, killing him instantly. Liza was charged with murder.

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8 Who does what in court?

REMEMBER

A judge and jury are found in the higher courts, magistrates are found in the lower courts, and barristers and solicitors can be found in all criminal courtrooms. Other court personnel vary between courts and between states.

1 Draw lines to match the court personnel with their description.

Description	Personnel
a decide whether defendant is guilty or not guilty	barristers
b call witnesses, swear them in, maintain order	judge
c lawyers presenting the case, wearing wigs and gowns	judge's associate
d record events during the trial	jury
e decide points of law and pass sentence	solicitors
f the judge's personal assistant	corrective services officer
g plain-clothed lawyers, main contact for client	court reporter
h escort defendant to and from the dock	court officer

The jury

Anybody who has enrolled to vote can be selected to appear on the jury roll. Names are picked from the electoral roll at random and notices are sent to potential jurors, requiring them to attend jury duty on a specific date. Variations exist between states, but some people are disqualified from serving because of their criminal status, are ineligible to serve due to their job or a disability, or can be excused on request.

2 Unjumble the words in the following sentences. The first letter of the jumbled word is provided as a clue.

a Jurors are selected at donram from the electoral roll. r_____

b Some criminals are qudifiesalid from serving on a jury. d_____

c In some states, lawyers are igibelinle to serve on a jury. i_____

d People who care for small children might be able to be edcuexs. e_____

e Potential jurors must answer their msunmos. s_____

f Serving on a jury is considered to be a civic uytd. d_____

g Not wanting to serve because it is ninveconniet is not grounds for excusal. i_____

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3 **Complete the passage using words from the word bank**

Word bank				
limited	connection	peremptory	unlimited	unfavourable
defence	specified	random	challenge	empanelled

Potential jurors are required to attend court but not all end up being _____, or chosen to sit on the jury. Both the prosecution and the _____ have the right to challenge jurors. There are two types of _____: cause and peremptory.

Cause challenges must be for a _____ reason, for example, the juror knows the defendant or has some _____ to the case. The number of possible cause challenges is _____.

Reasons do not need to be given for _____ challenges, but they are _____ in number. Each side will try to remove jurors who they think may be _____ to their case. It is sometimes argued that this process interferes with the _____ selection of jurors.

4 **Consider the statement 'Peremptory challenges should be abolished because they undermine the principles of random selection, thereby making the jury less balanced.' In small groups, list arguments for and against this statement.**

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9 Criminal courts

REMEMBER

Criminal courts operate in a hierarchy. Appeals may be able to be made to the next level up the hierarchy, depending on the circumstances.

1	Decisions of the High Court are binding on all Australian courts.	☐ True	☐ False
2	Decisions of a Supreme Court's Court of Criminal Appeal division are binding on all Australian courts.	☐ True	☐ False
3	District/County courts hear the most serious crimes.	☐ True	☐ False
4	Original jurisdiction refers to the ability to hear a case on appeal.	☐ True	☐ False
5	District/County courts do not exist in every state and territory.	☐ True	☐ False
6	District/County courts are presided over by magistrates.	☐ True	☐ False
7	Nearly all criminal cases first go to Magistrates/Local courts.	☐ True	☐ False
8	Magistrates/Local courts have no appellate jurisdiction.	☐ True	☐ False

Courtroom excursion

Go on a real or virtual excursion to a courtroom. Keep the following points in mind, regardless of which court you visit.

- **Silence is essential – all phones should be switched off and there should be no talking during proceedings.**
- **Stand when the magistrate or judge enters or leaves the room.**
- **Bow to the bench if you must leave before the case concludes.**
- **Respect the feelings of the parties involved, for whom the case may be a very stressful and emotional event.**

9 a **Identify the name of the court you are attending.**

_____

b **Identify the hierarchical level of this court (low, intermediate or high).**

_____

c **Describe the layout of the courtroom.**

_____

_____

_____

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d **You may not be able to view an entire case from start to finish. Fill in as many sections as you can in the following case summary table. *Hint:* Pleas are explained fully in Unit 11: How do you plead?**

The defendant **(Write the name and a general description of the person charged with the crime)**	
The crime **(Identify the type of offence, and write a brief outline of the key issues or the facts of the case)**	
The plea **(Did the defence enter a plea of guilty or not guilty? Outline any reasons that were given for the plea)**	
Witnesses **(List the names of the witnesses called, with a brief outline of their relevance to the proceedings)**	
Sentence **(Was the defendant found guilty or not guilty? Outline the nature of the sentence if one was imposed)**	

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10 Legal assistance

REMEMBER

People applying for legal aid may need to pass various tests. A means test might apply, which considers the applicant's income and assets. A merit test might also be necessary.

Case study: *Potier v Legal Aid Commission of New South Wales* [2011] NSWSC 1066

The plaintiff, Mr Potier, claimed the Legal Aid Commission (LAC) was unreasonably slow and not acting in good faith regarding his legal aid applications. He wanted all of his applications to be funded without delay.

Mr Potier was in jail at the time. The crime was soliciting (arranging and paying for) the murder of his former partner and her boyfriend. Because of his prison sentence, Potier had to apply for court permission to commence proceedings against the LAC.

Under the relevant statute, the court had to be satisfied that:

- the proceedings were not an abuse of process (taking improper advantage of the system)
- there was a *prima facie* ground for the proceedings (*prima facie* is Latin for 'at first face' and means 'on first sight or initial observation').

The Supreme Court of New South Wales said the *prima facie* requirement meant that Potier had to have an arguable case that was not totally hopeless. It looked at his legal aid applications, which had been rejected under the merits test and were currently being reviewed. The court did not agree the LAC was acting in bad faith. The court also noted that the LAC 'is charged with the important responsibility of allocating necessarily limited resources in accordance with its statutory duties and priorities'.

The Supreme Court held that Potier had not demonstrated a *prima facie* case. It was therefore not necessary to consider the other requirement (abuse of process) because both would need to be proven for the case to succeed. Leave to commence proceedings was refused.

1 **Identify the court that heard this case.**

2 **Outline why Potier had to apply for permission to commence proceedings against the LAC.**

3 **Identify the two requirements needed for the court to grant consent.**

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4 **Explain in your own words what is meant in this case by a *prima facie* ground.**

5 **Explain what the court meant when it said the LAC had to allocate limited resources.**

6 **Identify the reason given by the court for not having to decide whether there was an abuse of process.**

7 **Identify the final outcome of the case.**

8 **Form small groups and answer the following questions.**

a **Identify the areas of law to which you believe legal aid should apply.**

b **Identify the areas of law to which you believe legal aid should not apply.**

c **How and why did you make the above choices? Identify the key factors on which you based your decisions.**

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11 How do you plead?

REMEMBER

If the defendant pleads not guilty, a committal or trial will be set for a later date. If a defendant pleads guilty, there is no trial. When deciding a sentence, the court will look at the defendant's personal situation and any aggravating or mitigating circumstances.

1 **List three possible aggravating factors for a crime.**

2 **List three possible mitigating factors for a crime.**

3 **Explain why pleading guilty might reduce the sentence.**

4 **Read the fictional case study and answer the following questions.**

Case study: Assault in the night

Shortly after midnight, Mrs Olsen heard a pounding on the door. The 82 year old, who lived alone, was frightened and did not answer. The sound of smashing glass, however, brought her out of her bedroom. She saw two young men climb in through a window. The taller one demanded money. When Mrs Olsen refused, he pressed a knife to her throat. The smaller man found her handbag and removed $30 in notes and coins. She said that was all she had. Angered, the tall man punched her in the face and pushed her over. The two men ran outside, but were caught by police who had been alerted by a neighbour who had heard the window being smashed.

Ricky, the smaller man, was filled with remorse. He had only gone along with the idea because his friend Sam had insisted. Ricky was going through a bad patch. He had lost his job and his girlfriend had left him. He was behind on rent and his landlord was threatening eviction. This was the first time he had broken the law.

Sam, however, had three previous convictions for breaking and entering. In each case the victim was an elderly woman living alone. Sam deliberately targeted Mrs Olsen because she was vulnerable. He felt no pity for the old lady, who broke her hip when she fell and required hospitalisation. All he felt was anger at being caught.

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a List three aggravating factors in this fictional case study.

b Do you think Ricky and Sam were equally to blame? Explain the reasons for your answer.

c Identify three mitigating factors that Ricky could try to use in his favour.

d Ricky comes to you for legal advice. Would you advise him to plead guilty or not guilty? Explain the reasons for your answer.

e Outline how your answer to Question 4d would differ if your client was Sam.

f You are Ricky's lawyer. In the space below, prepare a brief 'not guilty' speech where you outline points in mitigation.

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12 Types of evidence

REMEMBER

Evidence refers to things that establish a crime was committed, and may form a link between the crime and the criminal. Three types of evidence are real evidence, documentary evidence and oral evidence.

1 **Define real evidence. Give an example.**

2 **Define documentary evidence. Give an example.**

3 **Define oral evidence. Give an example.**

4	**Court exhibits can only be examined by the party that entered them into evidence.**	☐ True	☐ False
5	**Biological samples can be entered into court as a type of real evidence.**	☐ True	☐ False
6	**Documentary evidence refers to documents whose contents are relevant to the crime.**	☐ True	☐ False
7	**Photographs and films cannot be types of documentary evidence.**	☐ True	☐ False
8	**Witness evidence is not always completely reliable.**	☐ True	☐ False
9	**Real evidence is only able to be interpreted in one way.**	☐ True	☐ False

Case study: Looking for evidence

Erin was reported missing by her flatmate. Two days later, the police found Erin's body hidden in isolated bushland. The autopsy found she had died from knife wounds. There had been no witnesses to the murder, but a neighbour heard Erin arguing with her boyfriend on the night she went missing. Her boyfriend, Harry, was questioned by the police. They found that bike tracks and footprints at the crime scene matched his bike and shoes. Soil on his tyres and shoes was of the same type as that at the crime scene. No fingerprints or bloodstains were found on the knife in the creek, which had been washed clean by the running water.

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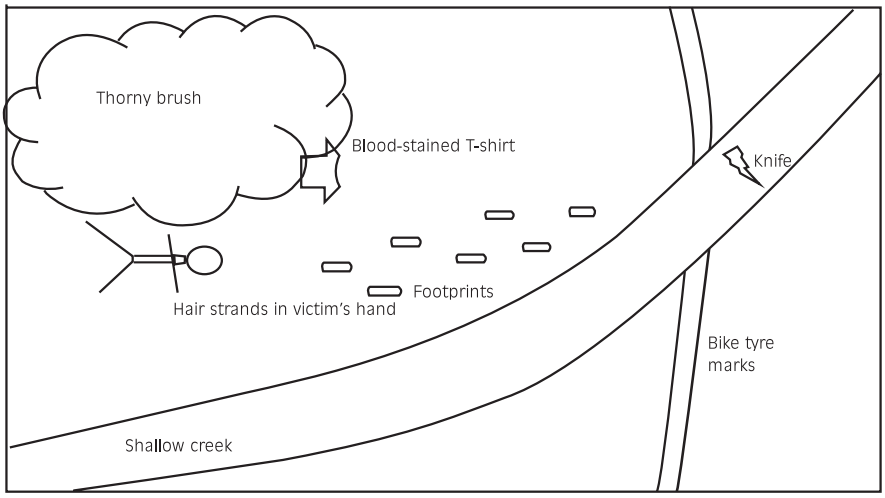

10 **Read the fictional case study and look at the crime scene diagram above. List the items in the diagram that might amount to real evidence.**

11 **Identify an alternative, innocent explanation for the existence of each item on your list.**

12 **Which pieces of evidence do you think would be the most persuasive in court? Explain the reasons for your answer.**

13 **Harry denies having been at the crime scene. Do you think he is lying? Is it possible that he is telling the truth? Explain the reasons for your answer.**

14 **The DNA analysis of the hair strands (which included the roots) found in Erin's hand show the hair belonged to Harry. Is there still room for reasonable doubt, or are you persuaded he murdered Erin? Explain the reasons for your answer.**

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13 Rules of witness evidence

REMEMBER

Rules govern the types of witness statements admitted into court. There are rules that consider a statement's relevance, any opinion, any hearsay and any comments about character.

1 **Read the witness statements in the following table. Complete the table to identify whether each statement would be admissible in court. Also identify the relevant rule and/or exception to the rule.**

Witness statements	Admissible or inadmissible	Rule and/or exception to rule
a 'I saw the defendant driving down Hudson Street. He was driving very fast, weaving in and out. He was obviously drunk.'		
b 'And then Sharon said she saw the defendant slap Anna across the face.'		
c 'The defendant used to kick kittens when he was a child. Clearly he is the sort of person destined to a life of crime.'		
d 'After examining the defendant in my consulting rooms I concluded she is suffering from bipolar disorder. I believe that in her manic state she was capable of stealing and driving the getaway car.'		
e 'He was bleeding so I cradled him in my arms. Just before he died he said he saw Jan enter the building.'		
f 'I don't know whether he assaulted Liz or not, but I know that a couple of years ago he was convicted for theft.'		
g 'Krati told me that she and her boyfriend fought regularly, but they always ended up getting back together.'		
h 'I am a forensic scientist and in my opinion the bloodstain pattern indicates that the assailant was standing 2 metres away from the victim when she shot him.'		

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2 Court transcripts are the official record of what was said in court, reproducing word for word what was said and who said it. Read the hypothetical court transcript below, then answer the following questions.

Prosecution: You are Stanley Fletcher, of 23B Wattle Grove?

Witness: I am.

Prosecution: And you are the cousin of Brian Fletcher, the deceased?

Witness: That's right.

Prosecution: Were you with Brian on the night of the third of May?

Witness: I was.

Prosecution: Can you tell the court what happened that night?

Witness: Well, Brian and I were at the White Lion. We was just having a drink, you know, when these three guys come up to us. The bartender said, like, 'Watch out, they're gay-bashers.' I wasn't scared because, like, we're not gay. But they must of thought we were, cos they grabbed Brian by the shirt. They started punching him and stuff. Really hard. I reckon they were high on something.

Defence: Objection.

a Identify two instances where the rule against opinion evidence may have been breached.

b Identify where the rule against hearsay evidence may have been breached.

c Outline how the prosecution could have introduced the evidence referred to in Question 2b without breaching the hearsay rule.

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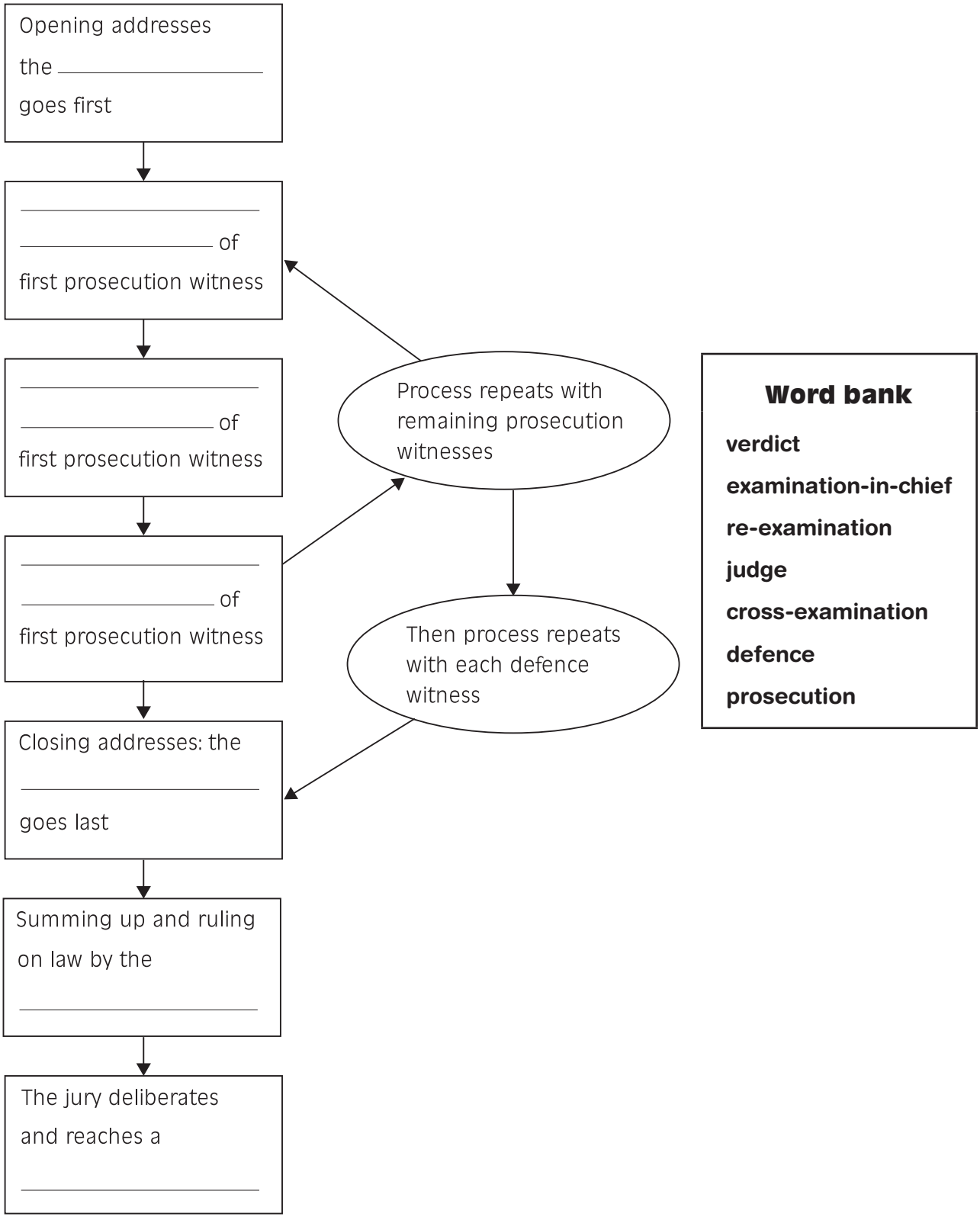
14 Trial procedures

REMEMBER

Criminal court cases follow a strict order of proceedings.

1 **The flow chart below illustrates the order of criminal court proceedings. Fill in the blanks using words from the word bank.**



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Examining a witness

Examining a witness is a skill. It is important for the lawyer to listen to the answers and respond accordingly, rather than simply reading out a list of prepared questions.

The aim of an examination-in-chief is to have the witness tell the story in their own words. Lawyers are not meant to ask leading questions of their own witnesses. A leading question is one that suggests its own answer. It directs the answer given by the witness and may sound more like a statement than a question. It could result in a 'yes' or 'no' answer rather than an explanation.

Leading questions are permitted in cross-examination, however. The purpose of a cross-examination is to reveal the truth. Lawyers might try to show that a witness is lying, has a bad memory, or was unobservant or biased. The opposing side tries to cast doubt on the witness's testimony; the other side might be able to clear this up in their re-examination.

2 The following questions are made in an examination-in-chief and they are leading questions. Rephrase them so that the opposing side will not be able to object.

a Did you see Francis enter the bedroom?

_____

b You were at your office at 5pm, weren't you?

_____

c The traffic lights turned green as you approached, didn't they?

_____

Leading questions are allowed on some preliminary matters during examination-in-chief; for example, 'You are Mabel Smith, aged 44 years, and working as a receptionist in the defendant's clinic?'

3 Explain why these sorts of leading questions are allowed.

_____

_____

Imagine you are appearing for the defence in each of the following cases. List the questions you would ask of the prosecution witness in cross-examination. Remember, leading questions are permitted in cross-examination.

4 The prosecution witness claims to have seen the defendant in the distance on a glaringly bright afternoon.

_____

_____

_____

_____

5 The prosecution witness overheard the victim of a murder case arguing with someone hours before the death. The witness did not see who the victim was fighting with but believes it was the defendant.

_____

_____

_____

_____

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15 The purposes of punishment

REMEMBER

When people break criminal laws, they are punished. Most punishments reflect elements of deterrance, rehabilitation, incapacitation or retribution.

Case study: *R v Fleming* [2006] QCA 26

R v Fleming involved an application to appeal against the severity of a sentence. The Queensland Supreme Court, Court of Appeal division, commented on the purposes of criminal punishment in this case.

Fleming, a 45-year-old unemployed man, wanted to appeal against his prison sentence. He had threatened to injure two public officers who were conducting an approved inspection on his property. The purpose of the visit was to inspect for the presence of unregistered dogs, and Fleming tried to stop them carrying out their duties. He was abusive, made obscene gestures and threatened violence.

Fleming had a long history of abusive and violent criminal offending, dating back to when he was a teenager. He had never been imprisoned, but always fined or given community service orders (orders to perform work to benefit the community). He regularly breached these orders.

This time, Fleming was imprisoned for four months, but allowed out early on condition he broke no further laws. The maximum penalty the judge could have given him for this offence was five years' imprisonment. Fleming claimed he should not have been given a prison sentence. He noted he had pleaded guilty early on, and was suffering from depression.

The Court of Appeal said the judge who passed the sentence was entitled to order imprisonment because:

- there was a need to protect public officers carrying out their lawful duties
- the applicant had a record of persistently offending.

The court noted: 'The sentencing judge was perfectly entitled to identify this as a reasonable opportunity to impose a penalty which might at last work some actual personal deterrence.'

The application for leave to appeal was refused.

1 **Identify the court that heard this case.**

_____

2 **Outline the purpose of Fleming's application.**

_____

_____

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3 a Outline the crime for which Fleming had received a prison sentence.

b Identify whether Fleming had received a prison sentence in the past.

4 a Identify the types of punishment Fleming had previously received.

b Do you think they were effective? Give reasons for your answer.

5 a Identify the length of the prison sentence imposed.

b Identify the maximum sentence that the judge could have imposed for this offence.

6 a List the two reasons given by the Court of Appeal for why the sentencing judge had been justified in imposing a prison sentence.

b Which of the purposes of punishment (deterrance, rehabilitation, incapacitation or retribution) is therefore the focus of this decision?

7 Identify the final outcome of the case.

8 Consider each of the purposes of punishment with regard to this case. For each, explain whether you think imprisonment would be the best way to satisfy that purpose.

a deterrence

b rehabilitation

c incapacitation

d retribution

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16 Types of penalties

REMEMBER

Imprisonment is the most severe type of punishment inflicted by Australian law. Suspended sentences might be used to help keep less dangerous offenders out of prison.

1 **The following statements outline both the advantages and disadvantages of imprisonment as a form of punishment. Write them in the correct spaces in the table below.**

- **a** **Protects society from offenders**
- **b** **Is expensive**
- **c** **Offender is stigmatised socially**
- **d** **Prevents offender from reoffending**
- **e** **Can lead to family breakdown**
- **f** **Acts as a deterrent**
- **g** **Can offer rehabilitation programs**
- **h** **Can lead to reoffending due to decreased job prospects**
- **i** **Can be a training ground for criminals**
- **j** **Members of community may see it as serving justice**

Advantages of prison system	Disadvantages of prison system

2 **Divide into small groups to discuss the following questions. Come up with your own conclusions and write them in your workbook.**

- **a** **Which types of crimes do you think are the most serious, posing the greatest threat to the community? Explain the reasons for your answer.**
- **b** **What type of punishment do you consider to be the most appropriate for the crimes you listed in Question 2a and why? *Hint:* You can refer to Unit 15: The purposes of punishment, if required.**
- **c** **Which types of crimes do you think are the least serious, posing the smallest threat to the community? Explain the reasons for your answer.**
- **d** **What type of punishment do you consider to be the most appropriate for the crimes you listed in Question 2c and why? *Hint*: Again, you can refer to Unit 15.**

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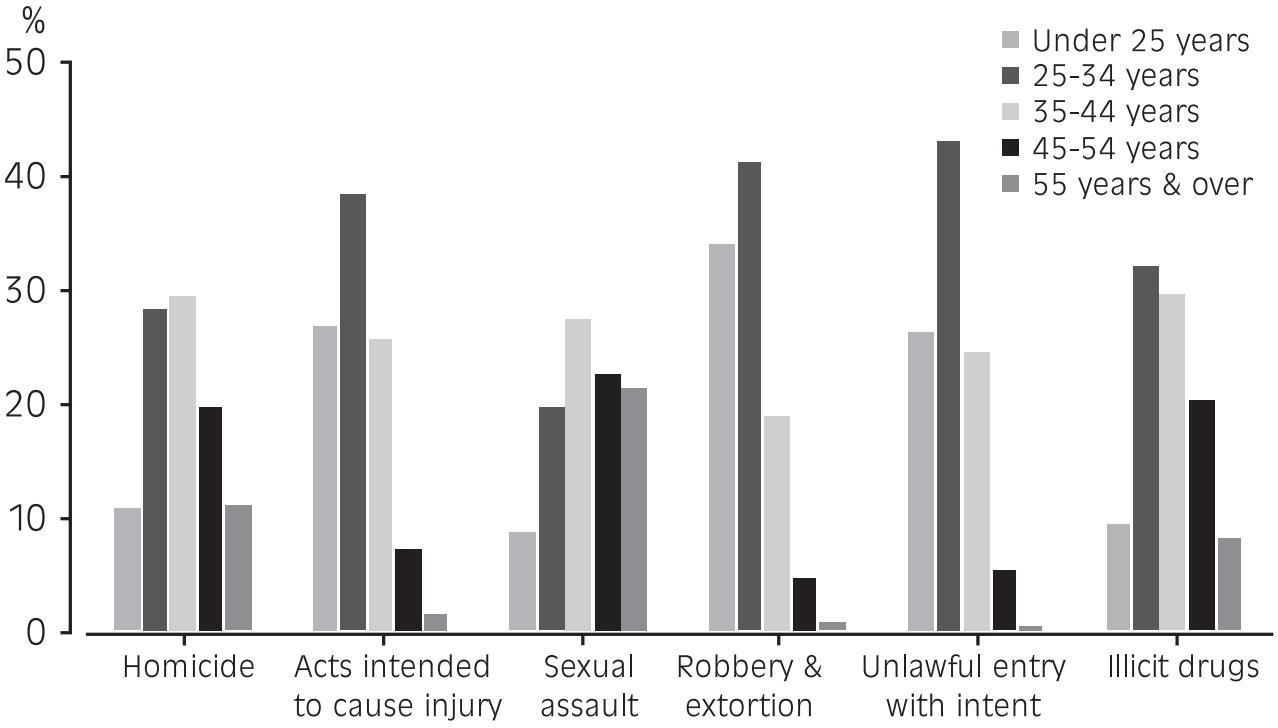
3 **Look at the following graph and then answer the questions below. Australian Bureau of Statistics, 2010, *Prisoners in Australia*, cat. no.4517.0, at http://www.abs.gov.au/ausstats/abs@.nsf/Latestproducts/4936A45797AF0238CA2577F3000F095C?opendocument.**

PROPORTION OF PRISONERS,
selected most serious offence/charge, by age group



a **List the types of crimes that have been identified as the most serious. Outline how this list compares to the one you created for Question 2.**

_____

_____

_____

b **Which age group had the highest proportion of prisoners for homicide?** _____

c **Which age groups had the highest proportion of prisoners for sexual assault?** _____

d **In the acts intended to cause injury category, which age group made up the highest proportion of prisoners?** _____

e **In the unlawful entry with intent category, which age group made up the lowest proportion of prisoners?** _____

f **In your opinion, should the age of the offender be taken into account when passing sentence? Discuss.**

_____

_____

_____

_____

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17 Determining the sentence

REMEMBER

The judge or magistrate must impose a sentence that is appropriate given all the surrounding circumstances. Judges generally have some discretion, but there are some maximum penalties set by legislation as well as some minimum terms (called mandatory sentences).

1 **'Judges should have discretion, within limits, to set an appropriate penalty.' Discuss this statement, with reference to what you think those limits should be.**

Criminal law crossword

2 **Use your knowledge of the criminal law to complete the crossword on these pages.**

ACROSS

5 **A repeat offender is also known as this (10)**

8 **Similar to a good behaviour bond (12)**

9 **An offender unhappy with their sentence might be able to do this (6)**

11 **Early supervised release of a prisoner (6)**

12 **Judges can exercise their own judgment, also known as this (10)**

16 **The highest level of prison security (7)**

19 **If an offender does not pay a fine, they may have this issued for their arrest (7)**

21 **The infliction of physical pain is this type of punishment, no longer used in Australia (8)**

22 **Periodic detention allows the offender to serve their sentence during these days (8)**

23 **These types of circumstances might lessen the sentence (10)**

24 **The person who determines the sentence (5)**

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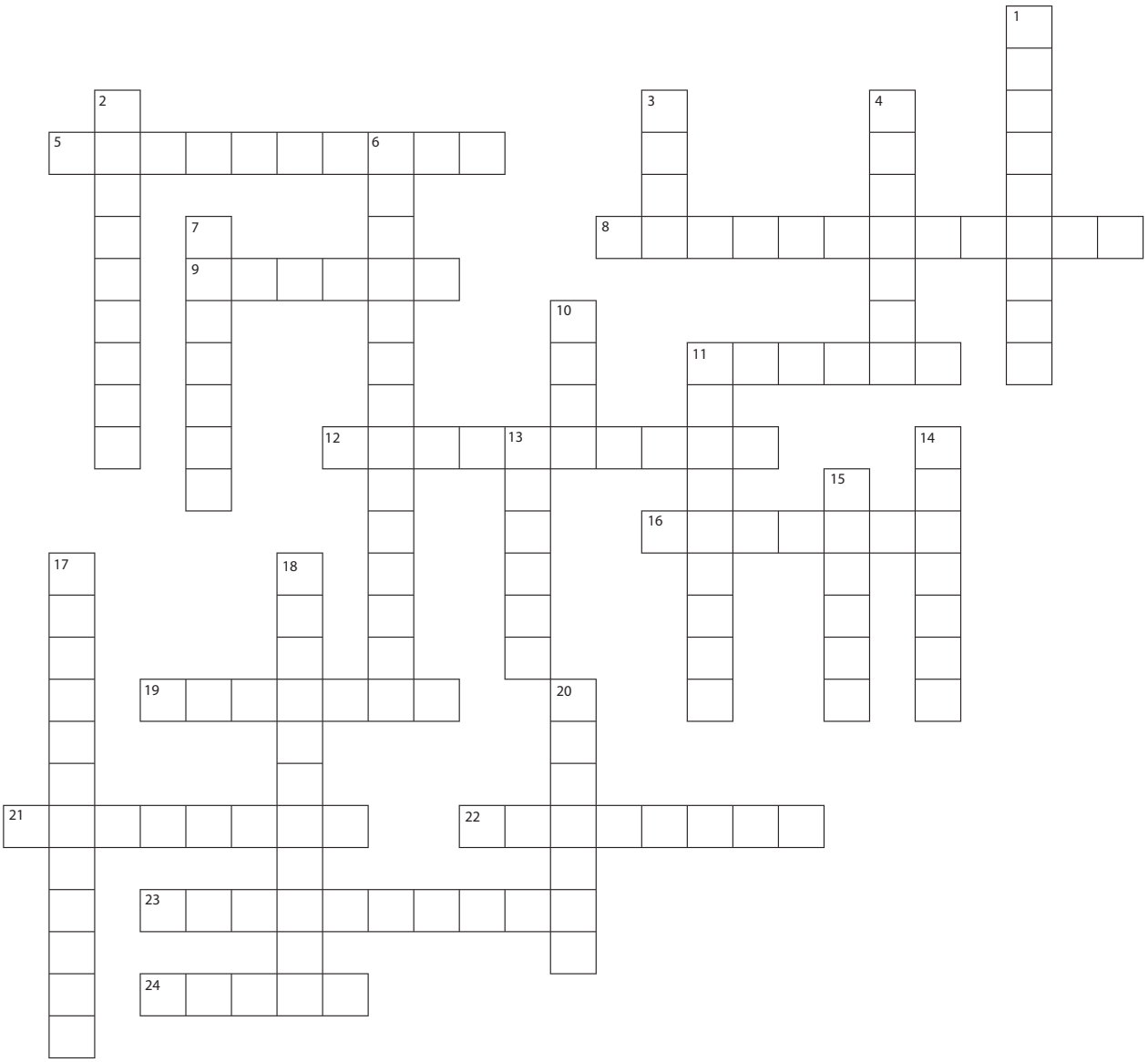
DOWN

1 This service order requires the offender to perform unpaid work benefiting society (9)
2 Discouragement of the commission of future crimes (9)
3 A sum of money to be paid to the state as punishment (4)
4 The death penalty is also known as this type of punishment, no longer used in Australia (7)
6 This prevents an offender from committing another crime (14)
7 First offenders might be given this instead of a penalty (7)
10 Detention of the offender at this place is sometimes an alternative to prison (4)
11 Non-custodial sentence requiring good behaviour and supervision (9)
13 Another word for 'rehabilitate' (6)
14 Another word for 'regret' (7)
15 This type of victim statement may be considered by the court when sentencing (6)
17 Complete deprivation of liberty in an institution (12)
18 These types of factors might increase the sentence (11)
20 Another word for retribution (7)



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18 Young offenders

REMEMBER

In Australia, the statutory minimum age of criminal responsibility is 10 years old. There is a legal presumption that a child between the ages of 10 and 14 is not capable of committing a criminal act. Young people over 14 but not yet 18 are considered fully responsible for any offence they might commit, but they are not treated the same as adults.

1 a **Do you think it is a good idea for a young offender and their family to meet with the victim, in a safe and controlled environment? Explain the reasons for your answer.**

_____

_____

b **Are there any situations where you think this would not be suitable? Explain the reasons for your answer.**

_____

_____

2 **In your opinion, is it fair that the names of young offenders in the Children's Court cannot be published? Explain the reasons for your answer.**

_____

_____

Case study: Kelly and Tara

Kelly, aged 9, and her sister Tara, aged 11, went to their local shopping mall. They wanted to buy some costume jewellery with their pocket money. They entered a store and made their selection, then realised they didn't have enough cash. Tara replaced a set of cheap bangles on the stand, but Kelly picked them up and slipped them into her pocket. Tara hesitated a moment before taking an extra set for herself and hiding them in her bag. Neither girl had broken the law before. They paid the shop assistant for all the goods except the bangles. As they tried to leave the store the assistant accused them of shoplifting and called the police.

3 **Can Kelly be charged by the police? Explain the reasons for your answer.**

_____

_____

4 a **Can Tara be charged by the police? Explain the reasons for your answer.**

_____

_____

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b Explain what the police would have to try to prove in a case against Tara.

5 Given this was a first offence and the value of the stolen items was very low, what course of action would the police most likely take?

6 Explain how your answer would differ if the girls had shoplifted before, and the value of the items was high.

Case study: Joshua

Joshua's parents went away for the weekend, leaving him alone in the house. Joshua, aged 16, decided to invite some friends over. He invited five of his mates from school and they planned to order pizza and watch the Friday night footy. Joshua packed some beer cans in the fridge in preparation. His friends arrived, but then a large group of teenagers Joshua barely knew gatecrashed. He tried to hold them off but failed. Some brought bottles of whisky; some brought joints. They were rowdy and played music very loudly. The police arrived in response to a noise complaint. Joshua had a joint in his pocket that he had accepted from an insistent girl, but he had no intention of smoking it. He was searched by the police.

7 Was Joshua old enough to be charged by the police without them having to show he thought he was acting wrongfully? Explain the reasons for your answer.

8 When Joshua packed beer in the fridge for himself and his friends, was he breaking the law? Explain the reasons for your answer.

9 Was Joshua breaking the law by possessing cannabis, even though he had no intention of smoking it? Explain the reasons for your answer.

10 Assume the police believed Joshua about the gatecrashers and the cannabis. Describe the action the police would most likely take.

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19 International crime

REMEMBER

International crimes include transnational crimes (which affect more than one nation), crimes that occur in international waters or airspace, and crimes that are so reprehensible they are seen as being against the whole of the international community.

1 **Read the following information then answer the questions below using the material in this text plus the Internet.**

Case study: Gaddafi

The year 2011 saw the end of the 42-year Gaddafi regime in Libya. Gaddafi's early actions included shutting down American and British military bases, expelling Italian settlers and banning the non-Arab Berber language from schools. The regime became increasingly fundamentalist Islamic and sponsored anti-Western terrorist attacks. Dissent within the country was brutally stamped out. People trying to form a political party were executed, and it was illegal to talk to foreigners about politics. Gaddafi threatened to kill dissidents who escaped the country.

Political protests grew and intensified in 2011, sparking off a civil war between Gaddafi loyalists and rebel forces. Demonstrators and unarmed civilians were massacred. In June 2011, the International Criminal Court (ICC) issued a warrant for Gaddafi's arrest for crimes against humanity; however, Libya refused to acknowledge the authority of the ICC.

The end of the regime came on 20 October 2011. Gaddafi was captured and killed by rebel Libyan forces. Some reports stated he was killed in crossfire; others claimed he was deliberately executed.

a **Visit the website of the ICC at http://www.icc-cpi.int. In your own words, outline the role of the ICC.**

_____

_____

_____

_____

_____

b **Identify who can initiate proceedings before the ICC.**

_____

_____

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c **Look at the case information sheet that outlines the warrant for Gaddafi's arrest on the ICC's website at http://www.icc-cpi.int/iccdocs/PIDS/publications/SaifAlIslamSenussiEng.pdf. Identify the two charges that were made against Gaddafi.**

d **Outline the alleged crimes identified on the case information sheet.**

e **Many countries have refused to ratify the treaty that created the ICC. These countries include the USA, China, India and Russia. In your opinion, can the ICC still be effective despite the lack of support from these important countries? Explain the reasons for your answer.**

2 **In the find-a-word puzzle below, locate the words associated with international crimes listed in the word bank.**

T	A	V	Y	G	L	S	E	T	H	I	U	N	I	A
I	H	S	I	S	E	I	Y	C	A	R	I	P	D	P
G	J	W	E	I	D	N	M	W	O	P	L	O	R	A
N	O	T	V	S	P	A	O	A	S	G	Y	G	E	R
I	Y	E	N	T	U	T	P	C	U	J	S	E	S	T
K	T	R	A	N	S	N	A	T	I	O	N	A	L	H
C	O	R	D	I	E	B	W	O	N	D	U	P	A	E
A	C	O	L	J	C	A	O	R	Y	M	E	D	V	I
J	Z	R	F	S	E	G	A	T	S	O	H	K	E	D
I	E	I	Y	U	D	K	N	U	T	S	N	U	R	O
H	A	S	J	P	I	K	H	R	A	C	N	O	Y	B
S	K	M	F	A	N	Y	T	E	M	S	C	D	I	S
A	T	S	A	T	R	A	F	F	I	C	K	I	N	G

Word bank

- hostages
- trafficking
- slavery
- torture
- apartheid
- transnational
- hijacking
- genocide
- terrorism
- piracy

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20 Mock criminal trial

Now it is time to bring the criminal law to life by running a mock trial. Read the following preparatory material and refamiliarise yourself with earlier material, especially Unit 13: Rules of evidence and Unit 14: Trial procedures. The classroom can be set up to mimic a courtroom (see Unit 9: Criminal courts).

The use of time limits during the trial will ensure everyone has a fair opportunity. The opening addresses are limited to 5 minutes each, examination and cross-examination to 15 minutes each, re-examination to 5 minutes and closing addresses to 10 minutes each.

Roles

Judge

Presides over the court, decides matters of law and rules on the evidence. The judge should be played by the teacher, who ideally should keep notes of the proceedings.

Judge's associate

The judge's assistant. Keeps track of time and ensures time limits for mock trial are kept. Keeps lists of objections made by barristers, as well as the judge's responses to the objections.

Played by: _____

Court officer

Opens and closes court, maintains order. Calls witnesses and administers the oath or affirmation. For example, the witness might say 'I swear by Almighty God that the evidence I give will be the truth, the whole truth and nothing but the truth'. An affirmation is similar but without the religious reference and can begin 'I solemnly and sincerely declare and affirm that . . .'.

Also passes any relevant documents from barristers to the judge's associate.

Played by: _____

Court reporter

Records proceedings, reads back transcript if required. This role can be omitted if there are not enough students; however, it is still a good idea to make a video or audio recording.

Played by: _____

Corrective services officer

Guards the accused in the courtroom and escorts them in and out of the courtroom. Role can be omitted if there are not enough students.

Played by: _____

Jurors

Decide matters of fact and determine whether accused is guilty or not guilty. The mock trial should have 12 jurors if possible, but can have less if there are not enough students.

Played by:

_____

_____

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Prosecuting barrister

Presents the case for the prosecution. Makes an opening address, questions witnesses and argues relevant points of law. If the class is large, it can have a team of two or more barristers who do the preparation together but question different witnesses.

Played by: _____

Barrister for the defence

Presents the case for the defence. Otherwise, the role is the same as for the prosecuting barrister.

Played by: _____

Solicitors

Assist the barristers in preparing their cases. Sit near barristers at bar table and take notes of the proceedings. May help barristers by pointing out relevant matters during the trial. Can be omitted if not enough students, otherwise there should be one or two per side.

Played by: _____

Defendant

Jason has pleaded not guilty to the charge of murder. He claims to have no knowledge of how the victim died.

Jason played by: _____

Witnesses

Should study the witness statements produced in these pages and answer questions accordingly, as far as possible. If necessary, witnesses can make up supporting details but should try not to contradict the given material. Expert witnesses can give their opinions, unlike other witnesses.

Cara played by: _____

Nikolas played by: _____

Bartender played by: _____

Bus driver played by: _____

Pathologist who performed autopsy played by: _____

Case summary

Yvonne and Cara have been friends for many years. They grew up together in a rural town and had recently started sharing a flat in the city where they were attending university. On the night of the murder the girls caught a bus to town. They went to a nightclub where they met two young men, Jason and Nikolas. They got along well, and Jason bought drinks for the girls. At 10pm Yvonne said she was feeling nauseous and dizzy and wanted to go home. She refused any help and said she'd catch the bus. Cara got back to the flat at 2am. She checked on Yvonne and thought she was asleep. The next morning, however, she realised that Yvonne was dead.

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Witness statements

Remember, witnesses can be mistaken. They might not have seen what they thought they saw, or their memory may be flawed. Or they might lie – to cover up for others or to hide a secret, innocent or otherwise.

Cara

I only wished I'd gone home with Yvonne when she said she felt sick. But I liked Nikolas and wanted to stay. Jason left around 10 minutes after Yvonne. I thought he wanted to leave me and Nikolas alone. I feel awful thinking how I was out having fun when my friend needed me. Nikolas and I left the nightclub at 1.30am. He caught my bus with me and walked me to the flat. He left me at the door and caught another bus home. I looked in on Yvonne. I asked her if she was ok. She didn't answer and I didn't want to wake her. The next morning she was late getting up. I went in her room and checked. She was very pale and her skin felt cold. She wasn't breathing, so I called the ambulance.

Bartender

I recognise the defendant. He is a regular at the nightclub. Each time I see him he is with a different girl. He doesn't talk to me much so I don't know much about him. He kept ordering his usual drinks – scotch and cola. I noticed the victim leaving rather early. She walked right past me, and I remember thinking the defendant must have bombed out that time. The victim looked unsteady on her feet. I thought she was drunk. I didn't notice when the defendant left. It was a busy night.

Bus driver

The victim boarded my bus around 10pm. She was swaying and looked very sleepy. I thought she'd been drinking and I remember hoping she didn't throw up on my bus. She stumbled on her way out, as if she had trouble seeing. I often have drunks on my bus, but I thought it was a bit early in the night for someone to get that sloshed.

Nikolas

Jason and I are good mates and have known each other for years. Jason's always picking up girls. I'm a bit shy, but he's really out there. Most nights we go out he scores. I thought he was going to score with Yvonne but she got up and left early. Jason offered to take her home but she refused. Not long after she left he got up. He winked at me and walked out. I think that meant for me to carry on. Jason might be a bit of a flirt but he's harmless. He's a good bloke and would never hurt anyone.

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Jason

Yvonne was not my type. I only went along with things as I could see Nikolas fancied the other one. Yvonne was quiet and grumpy. I bought her a few drinks but she didn't lighten up. She got drunk easily, too. When she left I didn't care. I went a bit later, thinking I should leave Nikolas to it. I wasn't fussed – win some, lose some. After I left I went straight home. I live on my own. I watched TV for a few hours then went to bed.

Forensic evidence

Yvonne's autopsy found she had died of suffocation. The findings were consistent with someone holding a pillow over her face. There were no signs of struggle. This was explained by high levels of Rohypnol found in her blood. Rohypnol is a prescription drug for insomnia that is also known as a 'date rape' drug. Its symptoms include nausea, dizziness, problems seeing and talking, sleepiness and passing out. There is no evidence as to who put the drug in Yvonne's drink. The autopsy found she did not have sexual intercourse that night. [*Hint:* Whoever plays the pathologist should do some further research into the effects of Rohypnol, and perhaps suffocation.]

Courtroom tips

Tip 1: Court etiquette

Court etiquette requires that everybody stands when the judge enters or leaves the room. People entering or leaving the courtroom should bow to the judge's bench as a mark of respect. Judges are referred to as 'Your Honour' and lawyers should stand while addressing the judge. Barristers should not argue with the judge. They can say 'With respect, I submit that . . . etc.', but when a judge passes a ruling it must be accepted. An appropriate phrase in those circumstances is 'If your Honour pleases'. Unlike in American courtroom dramas, Australian lawyers remain behind the bar table. They do not stride around or approach the witness stand. Lawyers refer to other lawyers in court as 'my learned friend'.

Tip 2: The art of cross-examination

The purpose of cross-examination is to challenge a witness's evidence with a view to discrediting them. Although leading questions are not permitted in examination-in-chief, they are often used in cross-examination. It is a rule among barristers never to ask a question in cross-examination that they do not know the answer to, as they might not get the answer they want. Once they have the information desired, they should stop asking questions and not give the witness the opportunity to continue talking. Demanding 'yes' or 'no' answers is acceptable, although the judge may allow the witness to explain themselves more fully.

Tip 3: Hostile witnesses

Barristers cannot ordinarily cross-examine their own witnesses. However, if a witness gives evidence that favours the other side or contradicts evidence they had given in previous written statements, the barrister can try to have the witness declared hostile. The barrister is then able to cross-examine the witness.

Tip 4: Have fun!

Few things match the drama of the criminal courtroom. Part of a barrister's skill is to present their case in an engaging and entertaining manner, which helps get the jury on side. The best way to do this is to enjoy yourself and add a touch of theatre!

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Selected answers

1 What is a crime?

1 Summary offence: less serious, heard by magistrate; indictable offence: more serious, heard by judge and jury. **2** *Consider:* To reflect severity of offence, to speed up proceedings for less severe offences, to be able to make comparable sentencing decisions. **3** *Consider:* The process is generally faster, the accused might think a jury would not favour him or her, in hope of a less severe penalty. **4** Evidence for serious indictable offences is received, examined and tested before a magistrate. If the magistrate decides there is enough evidence to warrant a trial, the case will go to a higher court before a judge and jury. If not, the accused is discharged. This saves time and expense. **5** The case is dismissed and the defendant is free to go. **6 a** Regina, Latin for the Queen **b** The prosecution 'R' is listed first because they commenced the proceedings. **7** presumption; guilty; alleged; prove; burden; insanity; standard; high; reasonable; acquitted; convicted. **8 a** theft **b** fraud **c** speeding **d** murder **e** trafficking **f** assault **g** abuse **h** vandalism.

2 The mental element

1 present: murder; absent: involuntary manslaughter; mitigated: voluntary manslaughter.
2 a This was an honest mistake. To have stolen it, Ali would have had to have known it wasn't hers and intended to deprive the rightful owner of it.
b Perjury involves knowingly telling lies while giving evidence under oath. **c** Nathan was committing perjury. His motivation to lie does not matter. **d** Most likely this would be considered an unavoidable accident. **e** No, because Simon was not being reckless. He had no intention to hurt the old lady and did not even know she was there until she stepped out in front of the car. He was driving carefully and gave assistance. **f** Bribery is the offer of a payment with the intention of inducing the recipient to act contrary to their duty. **g** Ricardo dropped the money accidentally. He was not attempting to bribe the officer. **h** Fraud involves intentionally inducing someone to believe something that the person knows to be untrue, with the goal of financial gain. **i** Will committed fraud against his employer by putting in claims to be reimbursed for meals that he knew he did not have.

3 The physical element

1 c **2** b **3** a **4** c **5** c **6** An act is physical activity while an omission is the failure to do something that there was a duty to do. **7 a** Miller had a duty because he created the dangerous situation in the first place. **b** Miller's duty was to call the fire brigade. **c** *Consider:* Miller's ability to put the fire out, the danger he would be exposed to, whether there should be a need to reduce the danger resulting from one's actions. **8 a** The decision was voluntary. **b** Even if Miller were still drunk at the time, it would most likely be voluntary. It might be involuntary if he did not become intoxicated voluntarily. Alternatively, it might be involuntary if he had slept through the night and was unaware of the fire.

4 Causation

1 a The outcome would not have happened *but for* the defendant's act or omission **b** The act or omission is an 'operative and substantial cause' of the outcome **c** The sequence of events leading to the outcome. **2 a** Would the victim have died but for the stabbing? No. It is likely to pass this test. **b** The stabbing was an operative and substantial cause. It did not need to be the only cause. The woman's refusal was not enough in itself to be the main cause of death. It is likely to pass this test. **c** Blaue could not use the victim's religious principles to avoid liability. **d** Would the victim had drowned but for being placed unconscious near the water. Not likely. It is not likely to pass this test. **e** The tide coming in is an ordinary act of nature. It did not break the chain of causation. The chain would only be broken if the victim had regained consciousness and voluntarily walked into the sea. **f** Extraordinary acts of nature that could break the chain could include an earthquake or a tsunami. A fire could also be an extraordinary event (but not if Hallet lit the fire). **3** The operation of the test itself is fair, because it would be unfair if the accused could escape liability by saying death was due to other causes, such as refusal to have a blood transfusion or the ordinary action of the sea. But there are some situations where the intervening act should result in a not guilty verdict, e.g. an extraordinary act as described in *R v Hallet*.

5 Defences

1 Complete A, C, D, F; Incomplete B, E (note: provocation and diminished responsibility can operate differently in different states) **2** *Consider:* The defendant may not have understood what they were doing (insanity, diminished responsibility) or had no control over their actions (automatism); they may have felt they had no choice and feared for their own or others' safety (self-defence, duress). **3 a** Dave might have the defence of insanity if, at the time of the shooting, he did not know what he was doing or that it was wrong. Dave knew he was shooting someone, but believed he was in combat and was shooting the enemy. The defence might succeed but the onus is on the defence to prove it. If successful, Dave would end up in a psychiatric institution. **b** Shelly may be able to argue self-defence, which is a complete defence and could lead to acquittal. Shelley must have believed it was necessary to do what she did, and she must have held this belief on reasonable grounds. That is likely in this case because the intruder was strangling her. **c** If the intruder had tried to give up and leave but Shelly continued the attack, it is less likely that her defence would succeed. Depending on circumstances and state laws, if excessive or unreasonable force was used it might reduce murder to manslaughter – that is, it would be a partial defence only. **4** *Consider:* Whether defence can also be used in non-gender biased ways, for example, when one man provokes another into fighting by criticising him.

6 Police investigations

1 About 70–80 per cent **2** WA **3** Not necessarily, as other states may have had more that were not reported.

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4 About 25–40 per cent **5** WA **6** *Consider:* At first glance surprising, as trends go in opposite directions, but types of crimes are very different so not necessarily linked. **7** Break-ins and motor vehicle thefts **8** Reporting to the police is a requirement for claiming on insurance policies **9** Nothing would have been stolen **10** *Suggestions:* May fear retaliation, might not trust or like the police, might be in a relationship with the offender, might consider it a private matter, may fear judgment of friends or family, might dread 'reliving' the experience by discussing it with police, might fear they will not be believed.

7 Under arrest

1 a **2** c **3** d **4** d **5** c **6** Case study: Liam: Although he is a repeat offender, Liam is likely to be granted bail as the crime is not considered to be very serious. Case study: Michael: Michael is not likely to be granted bail. This is the sort of crime that carries a presumption against bail. The fact that he had no prior record is unlikely to help him. Having no job is also likely to go against him in a bail application. Case study: Liza: Bail is generally not granted in murder cases unless exceptional circumstances exist. It is possible that Liza will be granted bail, however, given that she was acting to save her son's life. Being socially isolated, there may be no-one to help her care for the child, and that will also be taken into consideration. Liza's lawyers would argue that she is not a threat to the community.

8 Who does what in court?

1 a jury **b** court officer **c** barristers **d** court reporter **e** judge **f** judge's associate **g** solicitors **h** corrective services officer. **2 a** random **b** disqualified **c** ineligible **d** excused **e** summons **f** duty **g** inconvenient. **3** empanelled; defence; challenge; specified; connection; unlimited; peremptory; limited; unfavourable; random.

9 Criminal courts

1 true **2** false **3** false **4** false **5** true **6** false **7** true **8** true

10 Legal assistance

1 The Supreme Court of New South Wales **2** Because Potier was serving a prison sentence **3** That the proceedings were not an abuse of process, and that there was a *prima facie* ground for the proceedings **4** *Prima facie* means at first appearances, or on first observations. In this case it required the plaintiff to have an arguable case, or one that was not totally hopeless. **5** The sum of money available for legal aid is limited, and it is up to the LAC to decide how to best use this money. The LAC must do this in accordance with its duties under the law. **6** Both grounds had to be proven for leave to be granted. As one was not proven, it was not necessary to even consider the other. **7** Leave to commence proceedings was refused.

11 How do you plead?

1 Aggravating factors may include: the victim was a child or elderly or had a disability, the use or threat of weapons, the use or threat of violence, the offence was cruel, the offender was a teacher or in some other position of authority over the victim, the offender had previous convictions, the offender was on bail. **2** Mitigating factors may include: the offender was provoked by the victim, the offender was mentally impaired, the offender was acting under duress or forced to take part in the crime, the offender had a good chance of rehabilitation, the offender was unlikely to reoffend, the offender accepted responsibility for the offence and felt remorse. **3** Pleading guilty may indicate the offender has accepted responsibility and feels remorse. Also, pleading guilty early in the proceedings saves time and the expense of a trial. **4 a** The fact that it occurred in the victim's home and late at night, the victim's age, the use of a weapon, physical violence, physical harm. **b** Sam was more to blame. He was the instigator and coerced Ricky to take part. Sam threatened the victim with a knife and later punched and pushed her. **c** Ricky could say he was acting under duress. He could point out his previous lack of convictions and good character. His financial and emotional difficulties could also be raised. He felt remorse and would be unlikely to reoffend. **d** I would advise Ricky to plead guilty. It is unlikely that a plea of not guilty would succeed, especially as the victim can identify him. I would then present the mitigating factors to the court and ask for a reduced sentence. **e** I would also advise Sam to plead guilty. Again, a plea of not guilty is unlikely to succeed and he might receive more favourable treatment for not going to trial.

12 Types of evidence

1 Physical objects and biological material, such as weapons, clothing, bloodstains **2** Documents – such as bank statements – or photographs whose contents relate to the offence **3** Statements from a person who witnessed events or has special expertise relevant to the case, such as a doctor **4** false **5** true **6** true **7** false **8** true **9** false **10** T-shirt, hair strands, footprints, knife, tyre marks **11** T-shirt – someone might have hurt themselves on the thorny bush and discarded shirt; footprints and tyre marks – made by people not connected to murder, either before or after; knife – rubbish dumped in creek; hair strands – hard to identify feasible alternative explanation. **12** The blood-stained T-shirt and the hair strands, as they can be analysed for DNA evidence, which is highly reliable and easy to connect to a crime or criminal. **13** Given that a neighbour overhead Harry and Erin arguing, it is possible he is lying. He might still be telling the truth. Other people may have the same shoes and bike tyres, and other locations may have the same types of soil. **14** Most likely Harry was the murderer – very unlikely to have an innocent explanation.

13 Rules of witness evidence

1 a inadmissible; opinion evidence is inadmissible **b** inadmissible; hearsay evidence is inadmissible **c** inadmissible; evidence of bad character is inadmissible **d** admissible; expert witnesses are able to give their opinion **e** admissible; dying declarations are an exception to the hearsay rule **f** inadmissible; irrelevant evidence is inadmissible **g** inadmissible; hearsay evidence is inadmissible **h** admissible; expert witnesses are able to give their opinion **2 a** 'They must of thought we were', 'I reckon they were high on something' **b** 'The bartender said, "Watch out, they're gay-bashers."' **c** The prosecution could have called the bartender into court to give evidence.

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14 Trial procedures

1 prosecution; examination-in-chief; cross-examination; re-examination; defence; judge; verdict **2 a** Did you see anybody enter the bedroom? **b** Where were you at 5pm? **c** What colour were the traffic lights as you approached? **3** The issues are not contentious and it saves time. **4** *Consider:* The direction of the sun and whether it was in the defendant's eyes, how far away the defendant was, whether the witness recognised facial features or just hair style or clothing **5** *Consider:* The difficulty of identifying someone based purely on voice and/or speech mannerisms

15 The purposes of punishment

1 Queensland Supreme Court, Court of Appeal division **2** Appeal against the severity of the sentence that had been imposed. **3 a** Being abusive towards and threatening to injure public officers carrying out their duties. **b** No. **4 a** Fines and community service orders. **b** No, because Fleming kept breaching the orders and continued to reoffend. **5 a** Four months. **b** Five years. **6 a** Protection of the public officers carrying out their lawful duties, and the applicant's history of persistent reoffending. **b** Deterrence. **7** The application to seek leave to appeal was refused.

16 Types of penalties

1 Advantages: a, d, f, g, j. Disadvantages: b, c, e, h, i **2 a** *Consider:* Crimes of violence – physical safety of members of community, ability to go about daily lives without fearing violence **b** *Consider:* imprisonment, and whether incapacitation is most important to protect community from harm; also specific and general deterrence to discourage future offending **c** *Consider:* Small value property crimes – loss to victim only minor, no major impact on victim's life **d** *Consider:* fines, to take away monetary incentive of theft, also community service orders to act as a deterrent **3 a** homicide; acts intended to cause injury; sexual assault; robbery and extortion; unlawful entry with intent; illicit drugs **b** 35–44 **c** 35–44 **d** 25–34 **e** 55 & over **f** *Consider:* How it will shape a young person's future, the chance to rehabilitate and avoid a life of crime, ability to get a job in the future

17 Determining the sentence

1 *Consider:* the ability of judges to be flexible and to use their judgment on a case-by-case basis
2 ACROSS: 5 recidivist; 8 recognisance; 9 appeal; 11 parole; 12 discretion; 16 maximum; 19 warrant; 21 corporal; 22 weekends; 23 mitigating; 24 judge. DOWN: 1 community; 2 deterrant; 3 fine; 4 capital; 6 incapacitation; 7 warning; 10 home; 11 probation; 13 reform; 14 remorse; 15 impact; 17 imprisonment; 18 aggravating; 20 revenge.

18 Young offenders

1 a *Consider:* Offender confronted with consequences of their actions; it allows for remorse and deterrence. It must be safe and controlled to protect both sides from harm and to direct the process. **b** *Consider:* Might not be suitable where there is the continuing threat of violence or intimidation and it is not likely to be resolved. **2** *Consider:* Protects young offenders from possible revenge attacks, and allows them to enter adulthood without the stigma of being a criminal. **3** Kelly would not be charged as she was only 9 years old, and therefore under the age of criminal responsibility. **4 a** Tara was over 10 and could be charged. **b** The police would have to show that Tara knew that stealing the bangles was wrong at the time that she stole them. **5** The police are unlikely to charge Tara, although they can. They are more likely to give her a warning and to talk to her parents. **6** The police would be more likely to charge Tara. Given her youth, she might be ordered to undertake some rehabilitation program. **7** Joshua was over 14 years old and so could theoretically be charged without the police needing to establish that he thought he was doing the wrong thing. **8** Young people under 18 years old are not permitted to purchase alcohol, but there are no laws making it an offence to drink in a private home. **9** Merely possessing illegal drugs is enough in most cases to be charged. **10** They would break up the party and probably issue Joshua with a warning rather than charge him. His parents would also be notified on their return.

19 International crime

1 a The ICC is an independent body dealing with the most serious international crimes: genocide, crimes against humanity and war crimes. It will only act if there are no proceedings on a national level. It derives its authority from an international treaty. It has the power to prosecute individuals. **b** The United Nations Security Council, a state party or the court's prosecutor **c** Murder and persecution as defined by the court's statute **d** State policy aimed at quelling by any means, including lethal force, demonstrations by civilians against the Gaddafi regime; killing, injuring and arresting civilians taking part in demonstrations **e** *Consider:* Court needs widespread support in order to require compliance; less powerful nations might be less inclined to provide support when the most powerful nations do not.

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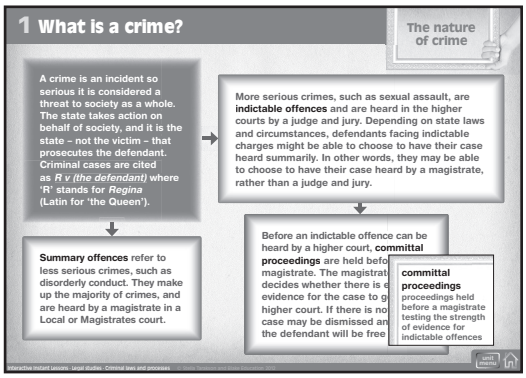

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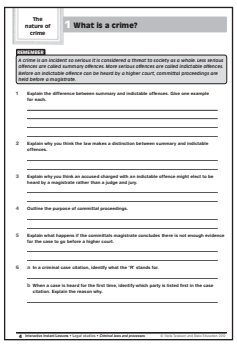
Work sheets



- Consolidate and revise the learnings in the unit introduction and interactive activity
- Can be set as class work or homework
- Students can complete interactive versions on the CD-ROM or photocopiable versions from the book
- Includes an extra unit with all the information needed to conduct a mock criminal trial in class

For quick-reference guides to all 19 interactive instant lessons and the mock trial unit, see pages 4–23 of this pack.

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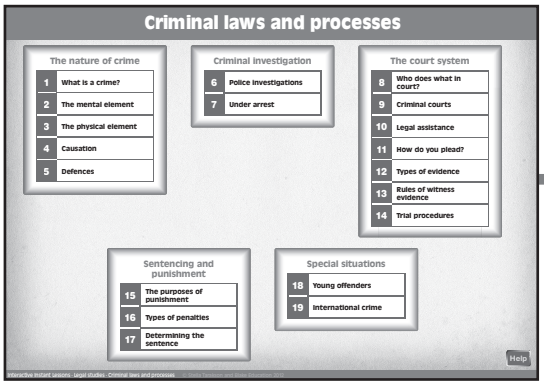
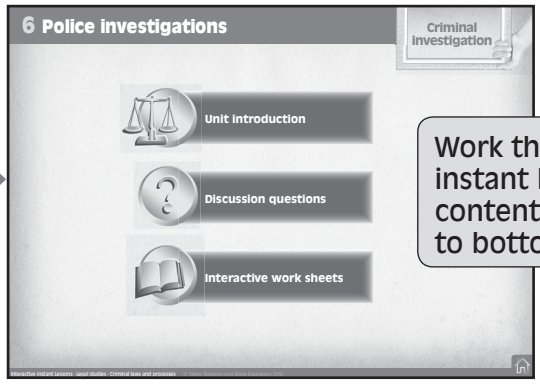
How to use the CD-ROM

Main menu

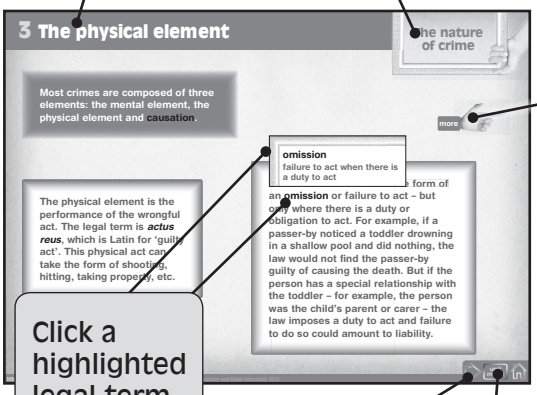


Unit menu



Work through the instant lesson content from top to bottom

Unit introduction



Unit name

Section name

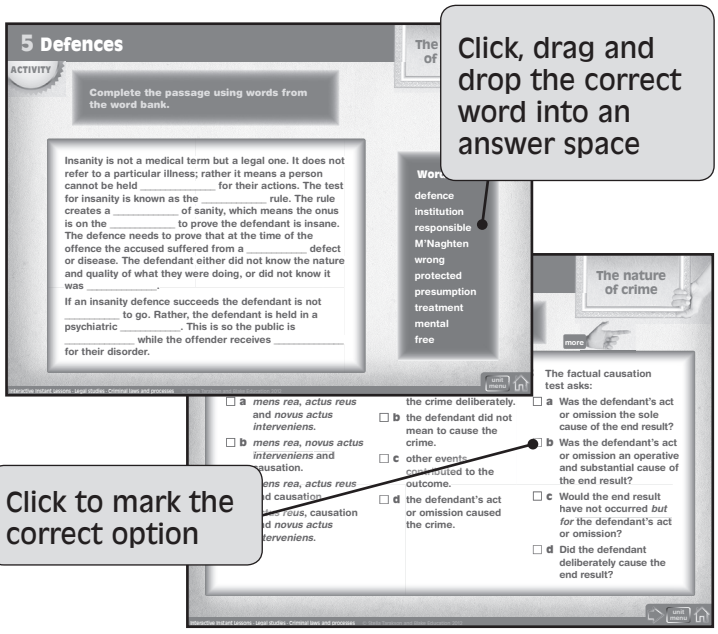
Hand icon indicates more content

Click a highlighted legal term to see its definition

Click to navigate to the next page

Click to return to the unit menu

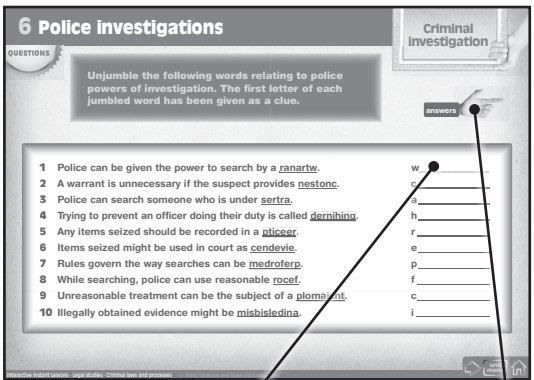
Interactive activities



Click, drag and drop the correct word into an answer space

Click to mark the correct option

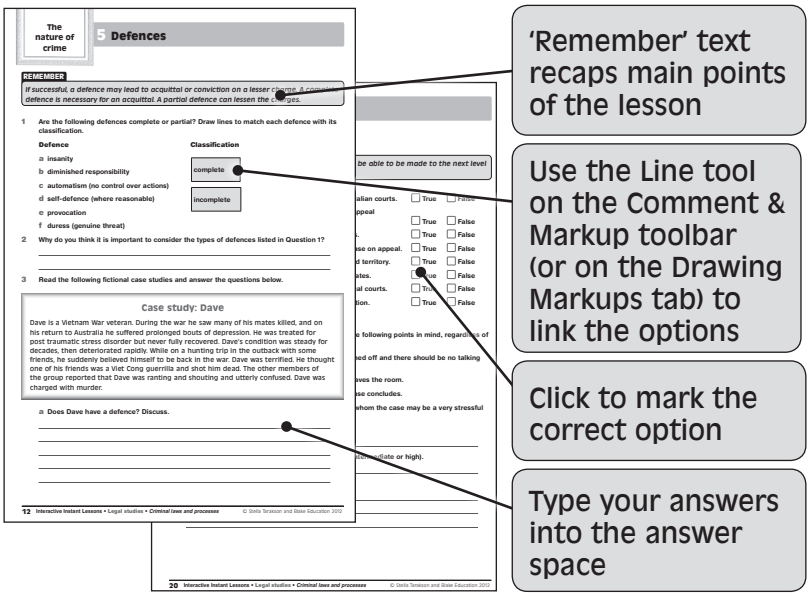
Discussion questions



Type or write your answers into each space

Hand icon indicates an answer page

Interactive work sheets



'Remember' text recaps main points of the lesson

Use the Line tool on the Comment & Markup toolbar (or on the Drawing Markups tab) to link the options

Click to mark the correct option

Type your answers into the answer space

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You will need Adobe Acrobat Reader and Adobe Flash Player to use this CD-ROM.

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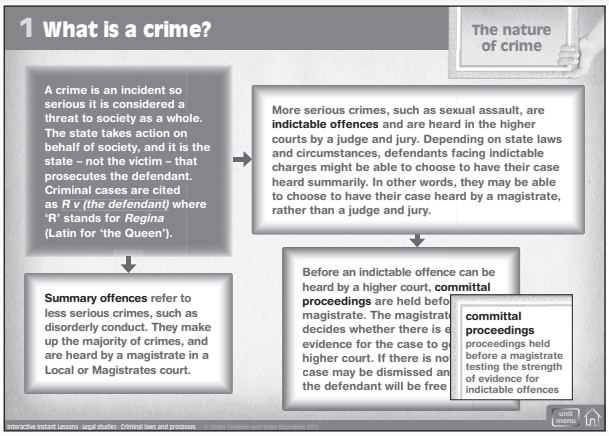
1 What is a crime?

INTERACTIVE INSTANT LESSON

Introduction

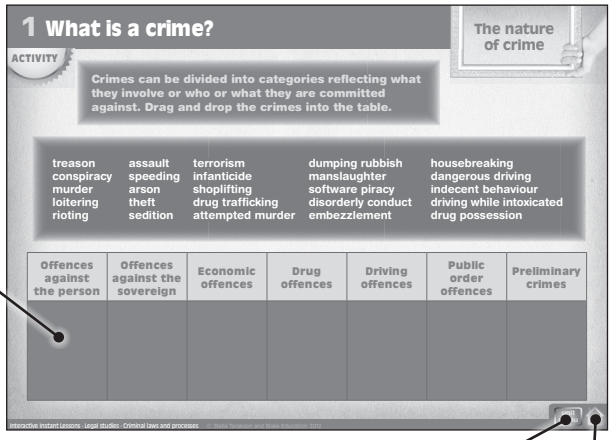
- *Introduces the definition of a crime.*
- *Students learn the differences between summary offences and indictable offences.*



Interactive activity

Complete the table by dragging and dropping each of the crimes into the table. (TIP: The discussion can be expanded by considering whether these crimes are summary offences or indictable offences.)

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 1. The work sheets include:

- *questions about summary offences, indictable offences and committal proceedings*
- *a cloze passage about the presumption of innocence and burden of proof*
- *an activity about different types of crimes.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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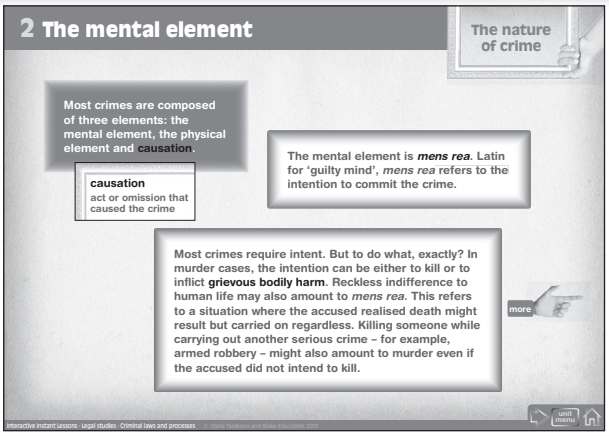
2 The mental element

INTERACTIVE INSTANT LESSON

Introduction

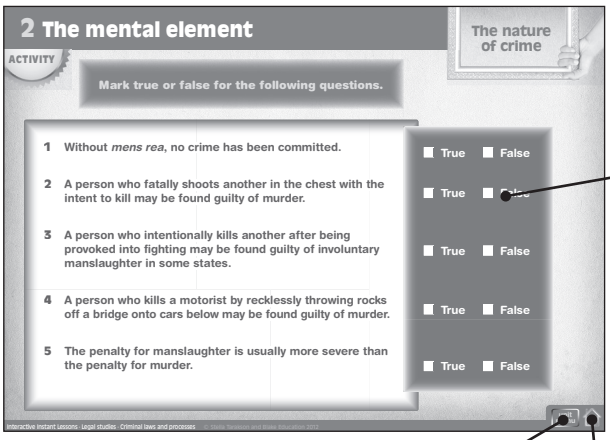
» *Explains that most crimes are composed of three elements: the mental element, the physical element and causation.*

» *Students learn about* mens rea, *the mental element of a crime.*



Interactive activity

Mark each of the five questions 'true' or 'false'.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 2. The work sheets include:

» *a mind map about* mens rea

» *five fictional case studies and comprehension questions. (TIP: Remind students what constitutes the crimes of perjury, bribery, fraud, culpable driving, murder and manslaughter.)*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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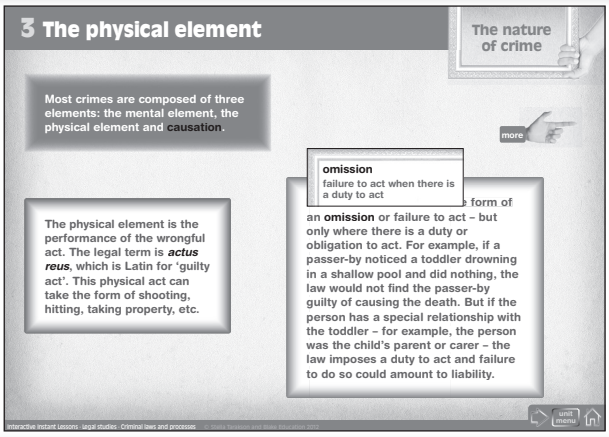
3 The physical element

INTERACTIVE INSTANT LESSON

Introduction

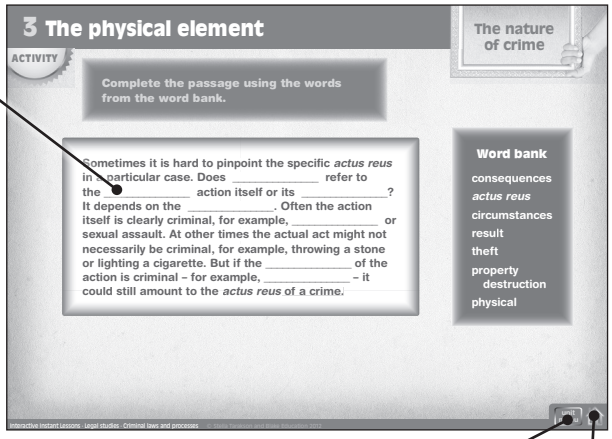
- *Explains that most crimes are composed of three elements: the mental element, the physical element and causation.*
- *Students learn about* actus reus, *the physical element of a crime.*



Interactive activity

Complete the cloze passage by dragging and dropping each word from the word bank into an answer space.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 3. The work sheets include:

- *multiple-choice questions on* actus reus
- *a real-life case study and comprehension and extension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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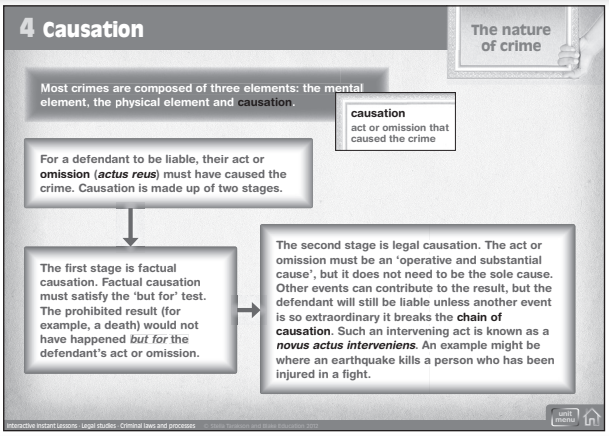
4 Causation

INTERACTIVE INSTANT LESSON

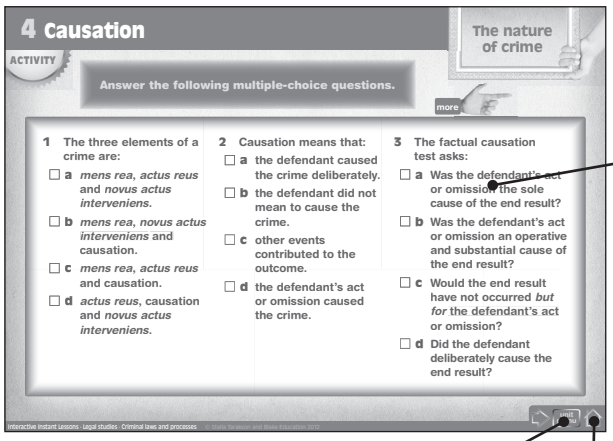
Introduction

- *Explains that most crimes are composed of three elements: the mental element, the physical element and causation.*
- *Students learn about factual causation and legal causation tests.*



Interactive activity

Answer each multiple-choice question by marking the option you think is correct.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 4. The work sheets include:

- *an activity that matches legal terms and their definitions*
- *two real-life case studies and comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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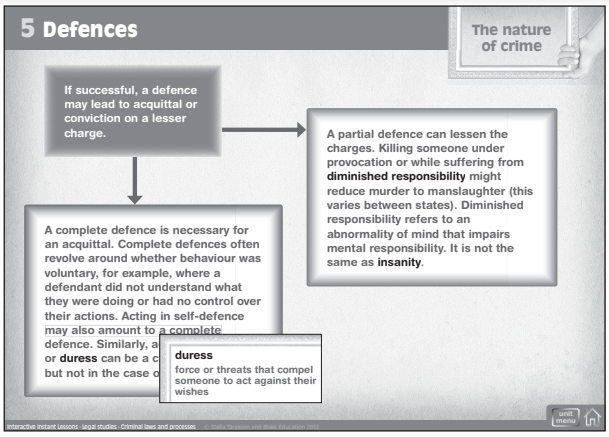
5 Defences

INTERACTIVE INSTANT LESSON

Introduction

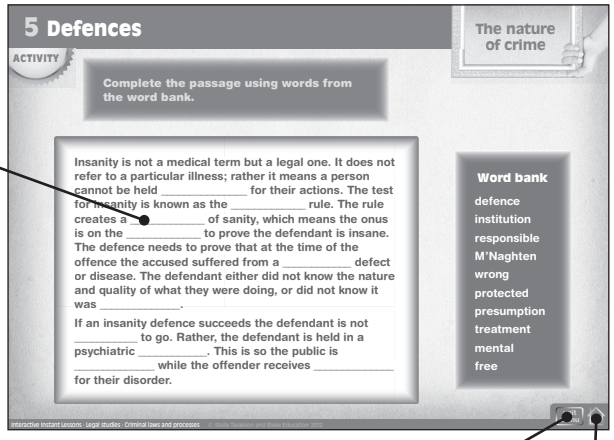
- *Explains that a defence may lead to acquittal or conviction on a lesser charge.*
- *Students learn about complete defences and partial defences. (TIP: Discuss the meaning of 'abnormality of mind', 'insanity' and 'acquittal'. Expand class discussion with examples of complete defences and partial defences.)*



Interactive activity

Complete the cloze passage about the defence of insanity by dragging and dropping each word from the word bank into an answer space.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 5. The work sheets include:

- *an activity that classifies different defences as complete or partial*
- *two fictional case studies and comprehension questions*
- *a discussion question about provocation.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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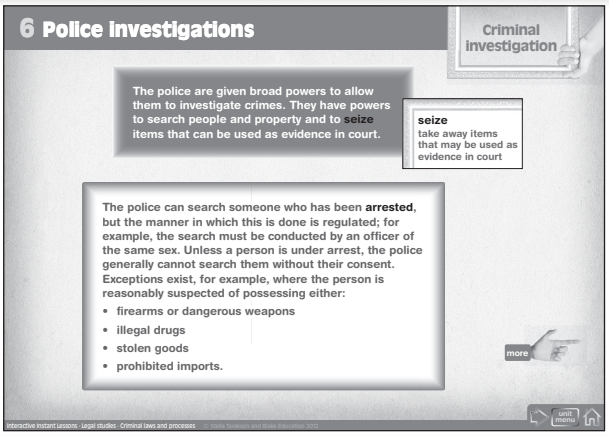
6 Police investigations

INTERACTIVE INSTANT LESSON

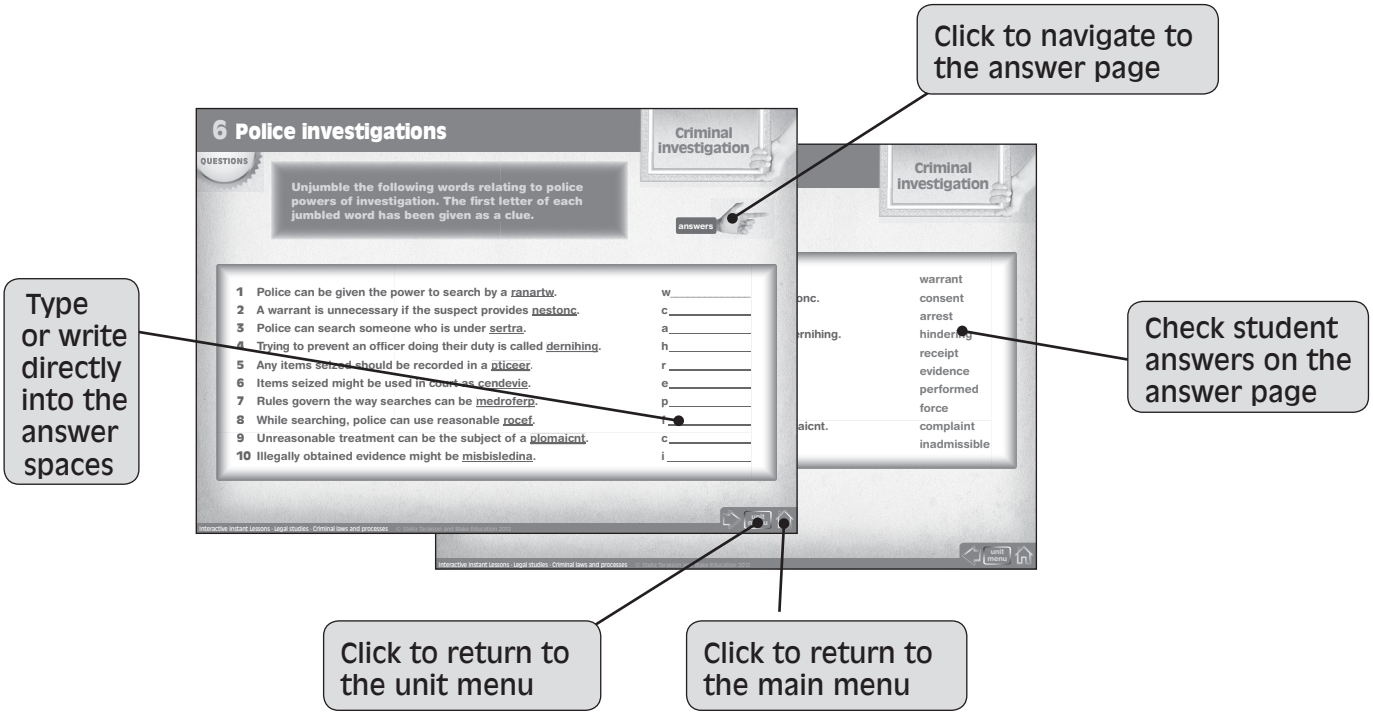
Introduction

- *Explains that police are given broad powers to allow them to investigate crimes.*
- *Students learn about powers to arrest people and search people and property.*



Discussion questions

Unjumble the nonsense words in the sentences about police powers. Type or write in your answer, then check your answers.



Work sheets

Consolidate student learning using the work sheets for Unit 6. The work sheets include:

- *graphs that show break-in, assault and general reporting rates*
- *comprehension and extension questions about the graphs.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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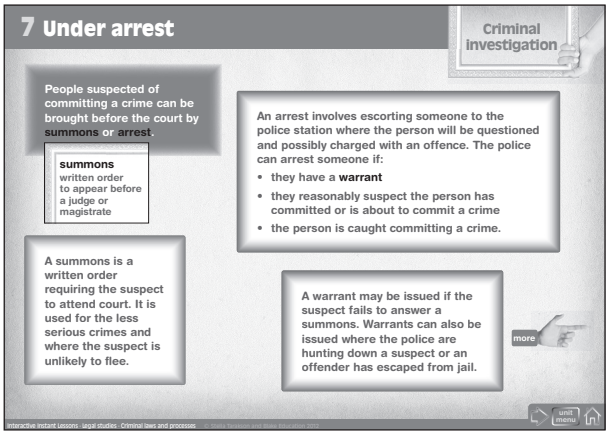
7 Under arrest

INTERACTIVE INSTANT LESSON

Introduction

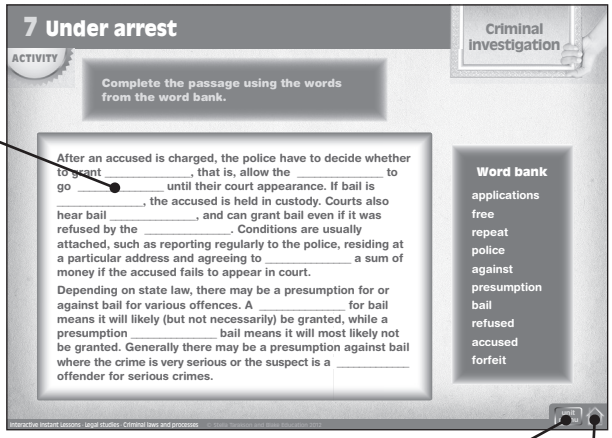
- » *Explains that a person suspected of committing a crime can be brought before the court by summons or arrest.*
- » *Students learn about the legal processes of obtaining a summons and conducting an arrest. (TIP: Discuss whether TV crime arrests are true to life – for example, does 'off the record' actually exist? See answer to Question 5 on the work sheet.)*



Interactive activity

Complete the cloze passage about charging an accused by dragging and dropping each word from the word bank into an answer space.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 7. The work sheets include:

- » *multiple-choice questions*
- » *three fictional case studies and comprehension questions about bail.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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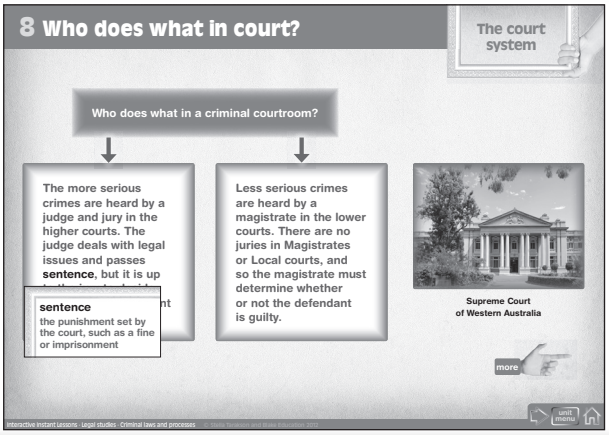
8 Who does what in court?

INTERACTIVE INSTANT LESSON

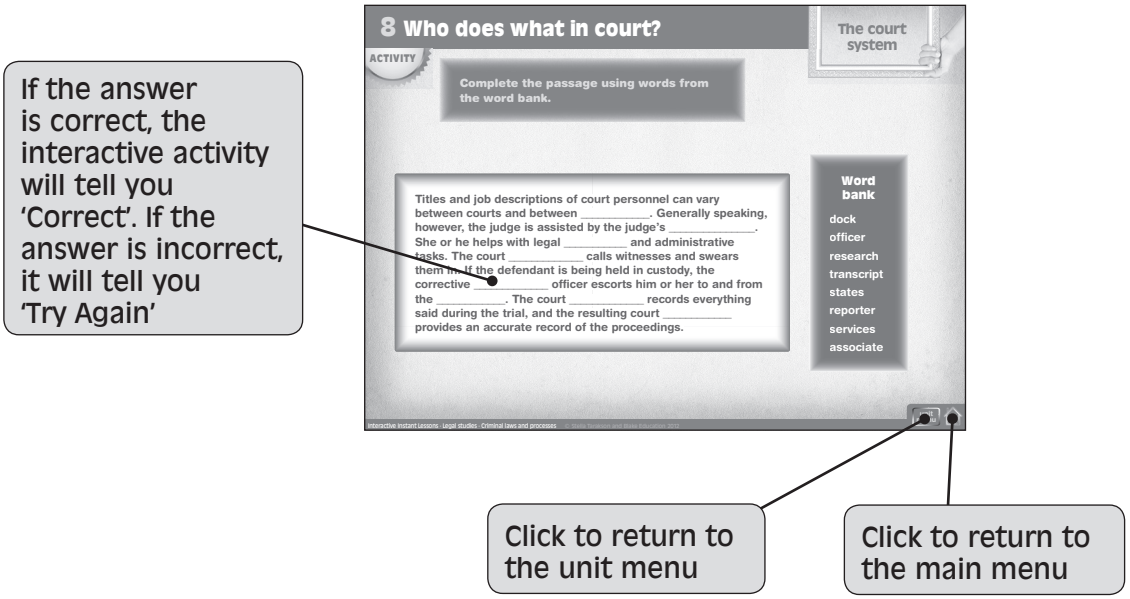
Introduction

- *Introduces the roles of the judge, jury, barristers and solicitors*
- *Students learn about court personnel, including what they might wear and where they sit in the courtroom*
- *Image shown: Supreme Court, Western Australia. The more serious crimes are heard by a judge and jury in the higher courts.*



Interactive activity

Complete the passage about court personnel by dragging and dropping each of the terms.



Work sheets

Consolidate student learning using the work sheets for Unit 8. The work sheets include:

- *an activity matching court personnel with their descriptions*
- *information about juries and an activity about jury selection*
- *a cloze passage about jury selection and cause and peremptory challenges.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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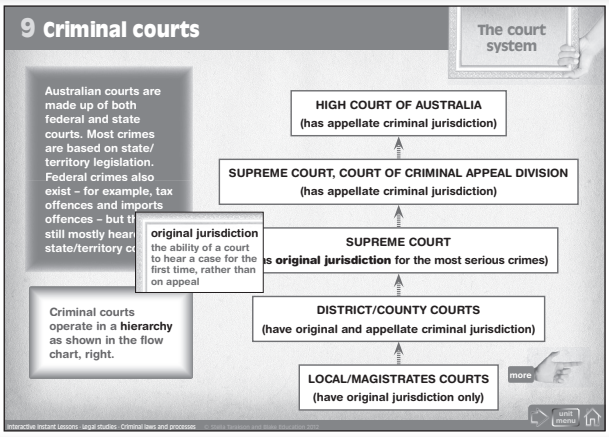
9 Criminal courts

INTERACTIVE INSTANT LESSON

Introduction

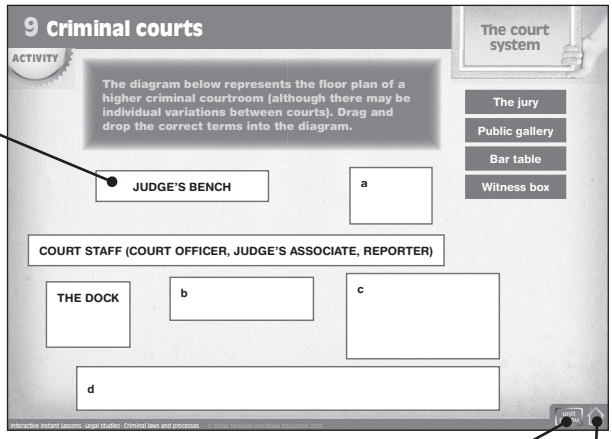
- *Introduces the criminal court hierarchy*
- *Students learn about the original and appellate jurisdictions of the courts. (TIP: Ensure students make notes in their workbooks regarding court hierarchy and roles.)*
- *Image shown: High Court building, Canberra. The High Court of Australia is at the top of the Australian court hierarchy.*



Interactive activity

Complete the diagram of the courtroom by dragging and dropping each of the terms.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 9. The work sheets include:

- *multiple-choice questions on criminal courts*
- *information about conducting a real or virtual excursion of a courtroom. (TIP: Virtual tours can be found at: http://multimedia.justice .vic.gov.au/egov/virtual_tour/ magistrates-court-vic.html; http://www.magistratescourt.tas .gov.au/about_us/virtual_tour)*

NOTE: Suggested web addresses were functional at the time of publication, but teachers should check them for appropriate content and to ensure that they are still functional before use with students.

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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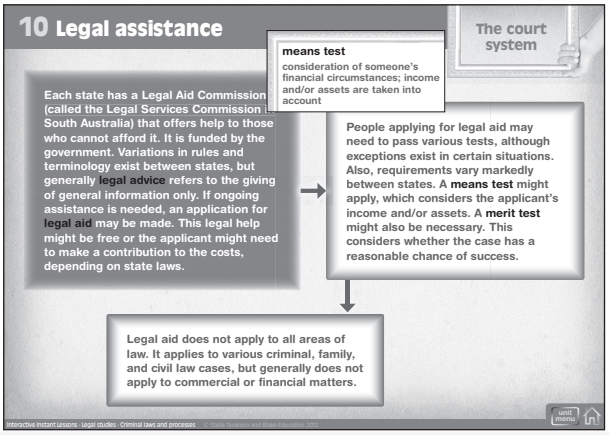
10 Legal assistance

INTERACTIVE INSTANT LESSON

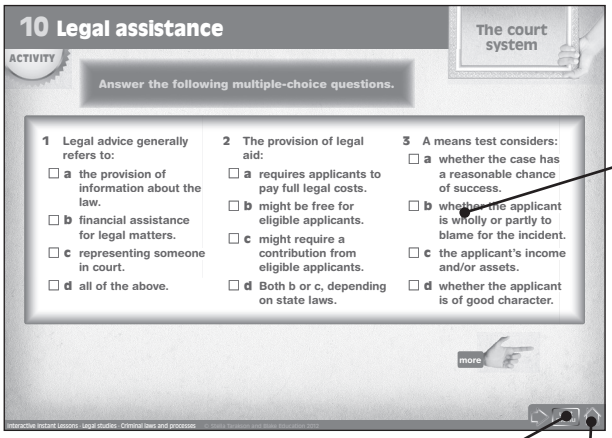
Introduction

- *Introduces government-funded legal advice and legal aid.*
- *Students learn about who can receive legal aid and why.*



Interactive activity

Answer each multiple-choice question by marking the option you think is correct.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 10. The work sheets include:

- *a real-life case study about a plaintiff versus a state Legal Aid Commission*
- *comprehension questions about the case study*
- *small-group discussion questions about who should be eligible for legal aid.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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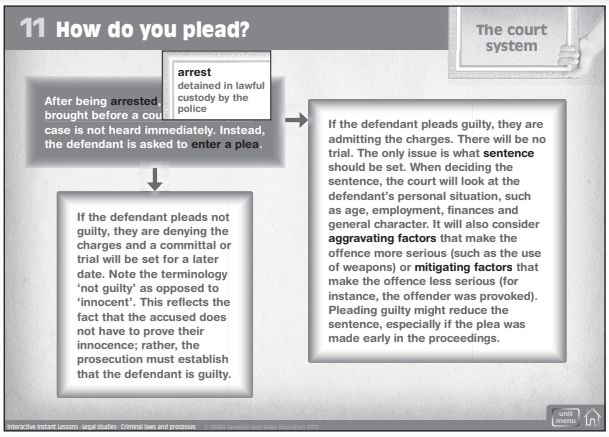
11 How do you plead?

INTERACTIVE INSTANT LESSON

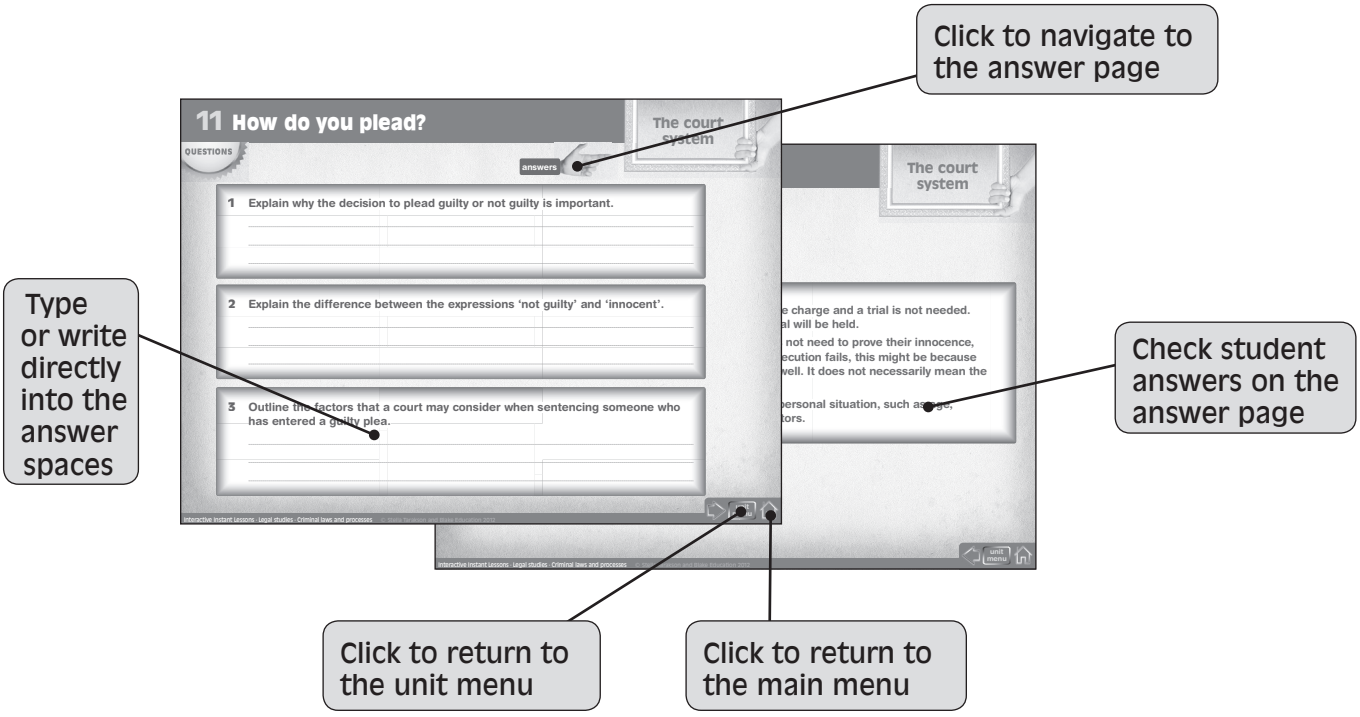
Introduction

- *Explains what happens after a defendant pleads 'guilty' or 'not guilty'.*
- *Students learn about the difference between 'not guilty' and 'innocent', and about sentencing, aggravating factors and mitigating factors.*



Discussion questions

Discuss each question, then type or write your answer.



Work sheets

Consolidate student learning using the work sheets for Unit 11. The work sheets include:

- *questions about aggravating factors, mitigating factors and advantages of pleading guilty*
- *a fictional case study and comprehension questions*
- *an activity in which students write a 'not guilty' speech. (TIP: Students could read their speeches to the class.)*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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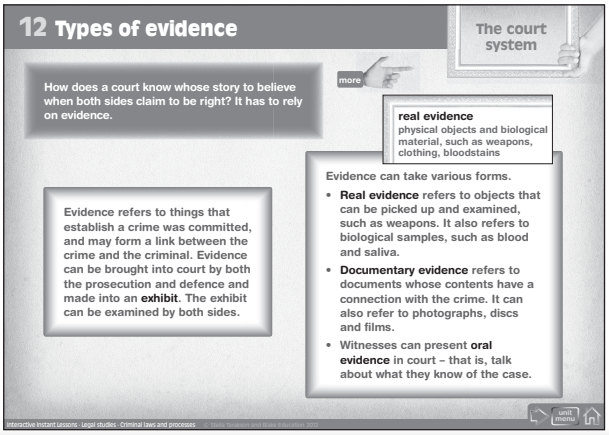
12 Types of evidence

INTERACTIVE INSTANT LESSON

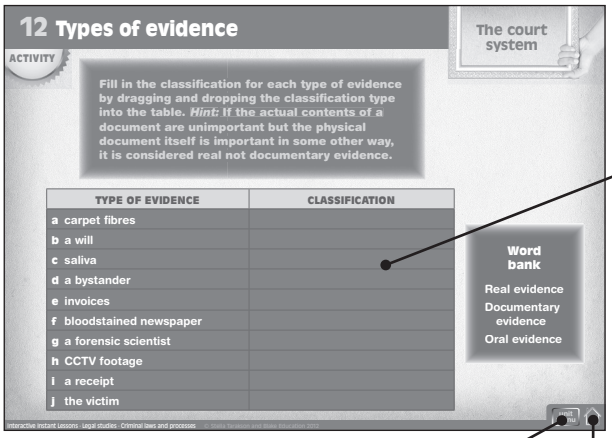
Introduction

- *Introduces real evidence, documentary evidence and oral evidence.*
- *Students learn about the different types of evidence, examples of each type, and the pros and cons of each type.*



Interactive activity

Complete the table by dragging and dropping the type of evidence into each answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 12. The work sheets include:

- *questions asking students to define each type of evidence*
- *true-or-false questions*
- *a fictional case study with a crime scene diagram*
- *comprehension questions about the case study.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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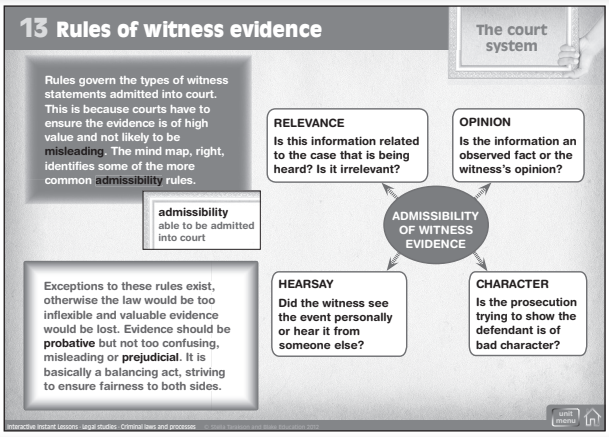
13 Rules of witness evidence

INTERACTIVE INSTANT LESSON

Introduction

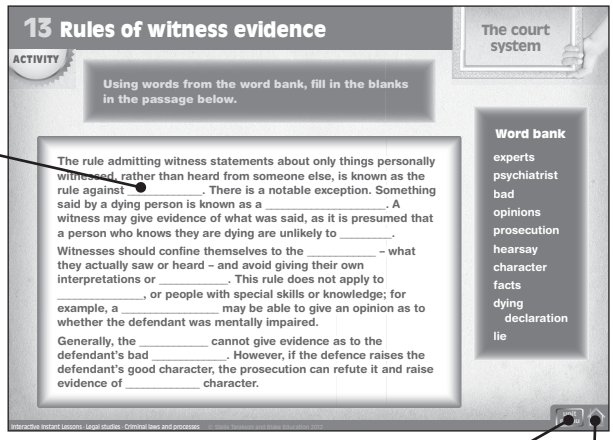
- *Introduces rules of admissibility of witness statements.*
- *Students learn about rules regarding relevance, opinion, hearsay and character.*



Interactive activity

Complete the cloze passage about witness statements by dragging and dropping each word from the word bank into an answer space.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 13. The work sheets include:

- *a table of witness statements that students must declare admissible or inadmissible*
- *a fictional court transcript, with comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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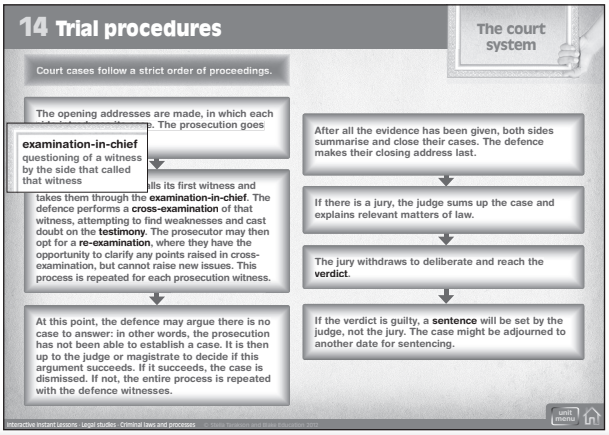
14 Trial procedures

INTERACTIVE INSTANT LESSON

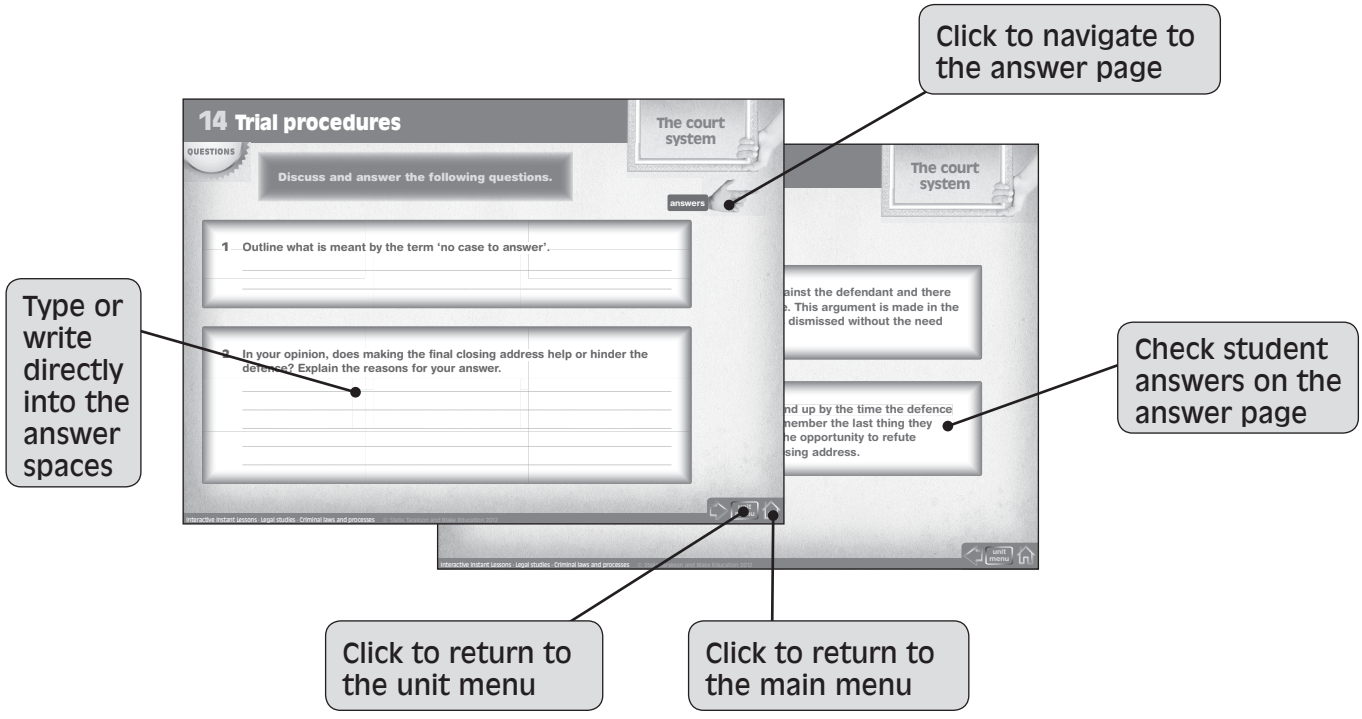
Introduction

- *Introduces the strict order of proceedings for criminal court cases.*
- *Students learn about criminal court proceedings, and about how the prosecution and defence examine, cross-examine and re-examine witnesses.*



Discussion questions

Discuss each question, then type or write your answer. Compare your answers against those on the answer page.



Work sheets

Consolidate student learning using the work sheets for Unit 14. The work sheets include:

- *a flow chart that students must complete*
- *information about examining a witness*
- *activities in which students write their own questions for witnesses.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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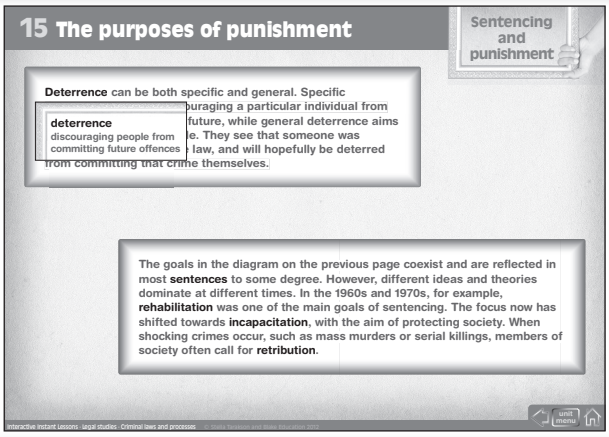
15 The purposes of punishment

INTERACTIVE INSTANT LESSON

Introduction

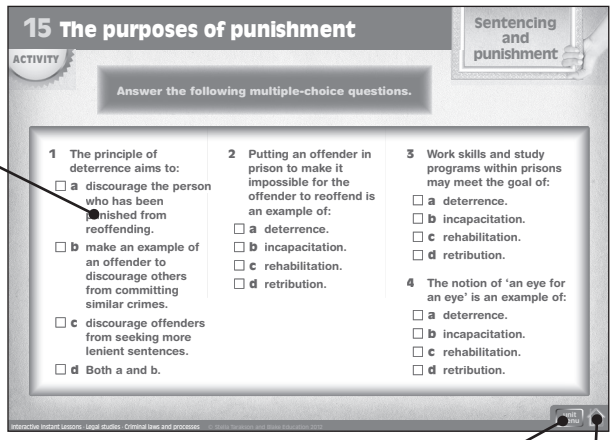
- *Introduces the main reasons for imposing criminal sanctions.*
- *Students learn about deterrence, rehabilitation, incapacitation and retribution. (TIP: Discuss these key terms to make sure students understand the concepts.)*



Interactive activity

Answer each multiple-choice question by marking the option you think is correct.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 15. The work sheets include:

- *a real-life case study about an appeal against the severity of a sentence*
- *comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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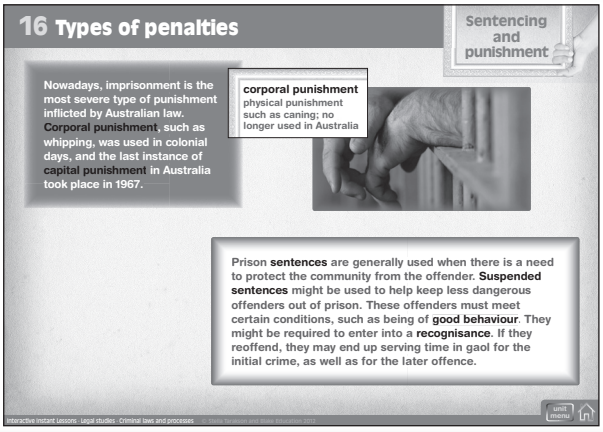
16 Types of penalties

INTERACTIVE INSTANT LESSON

Introduction

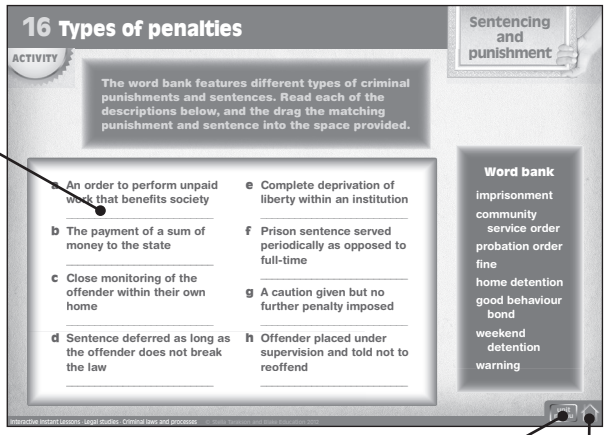
- *Explains imprisonment is the most severe type of punishment inflicted by Australian law.*
- *Students learn about prison sentences and suspended sentences, as well as about other forms of punishment such as probation orders and good behaviour bonds.*



Interactive activity

Complete the activity about different types of criminal punishment and sentences by dragging and dropping each word from the word bank into an answer space.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 16. The work sheets include:

- *an activity about the advantages and disadvantages of imprisonment*
- *small-group discussion questions about crime and punishment*
- *a graph about Australia's prison population and their crimes*
- *comprehension and extension questions about the graph.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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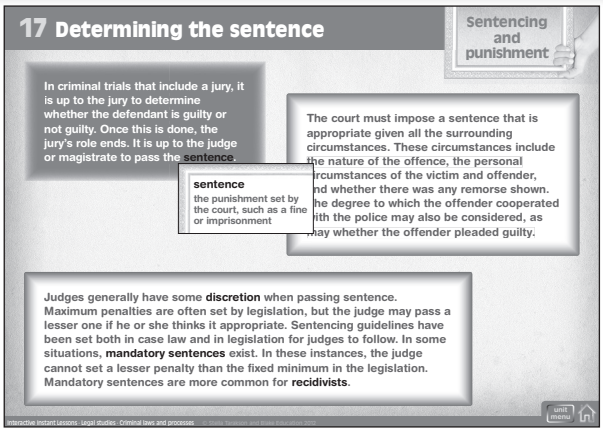
17 Determining the sentence

INTERACTIVE INSTANT LESSON

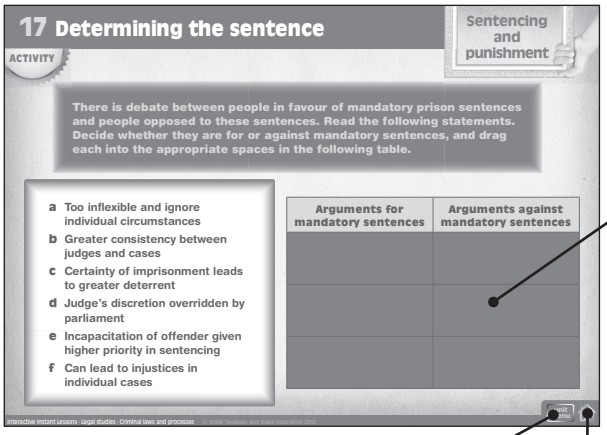
Introduction

- *Explains that once a guilty verdict is passed, it is up to the judge or magistrate to pass the sentence.*
- *Students learn about appropriate sentences, judicial discretion, sentencing guidelines and mandatory sentences.*



Interactive activity

Complete the table by dragging and dropping each argument into the appropriate column.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 17. The work sheets include:

- *a discussion question about judicial discretion in sentencing*
- *a criminal law crossword.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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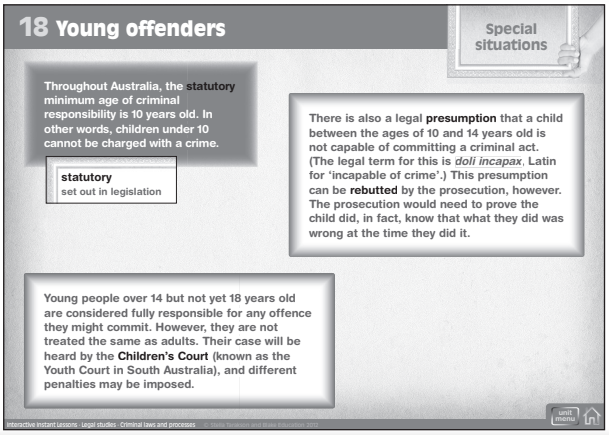
18 Young offenders

INTERACTIVE INSTANT LESSON

Introduction

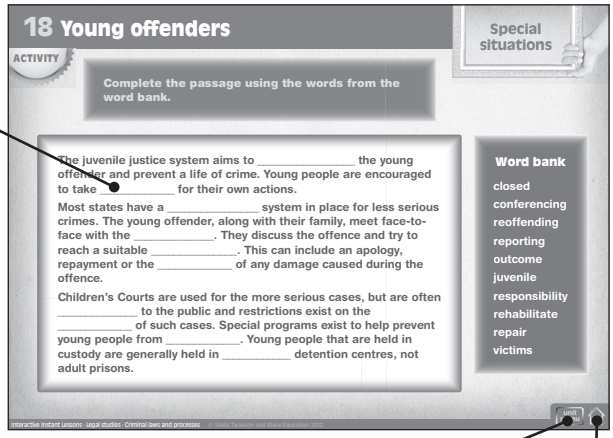
- *Introduces at what age children become legally responsible for committing criminal acts.*
- *Students learn about the statutory minimum age of criminal responsibility,* doli incapax *and about the role of children's courts.*



Interactive activity

Complete the cloze passage about the juvenile justice system by dragging and dropping each word from the word bank into an answer space.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 18. The work sheets include:

- *questions about students' opinions on the juvenile justice system*
- *two fictional case studies involving young offenders*
- *comprehension questions on the case studies.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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19 International crime

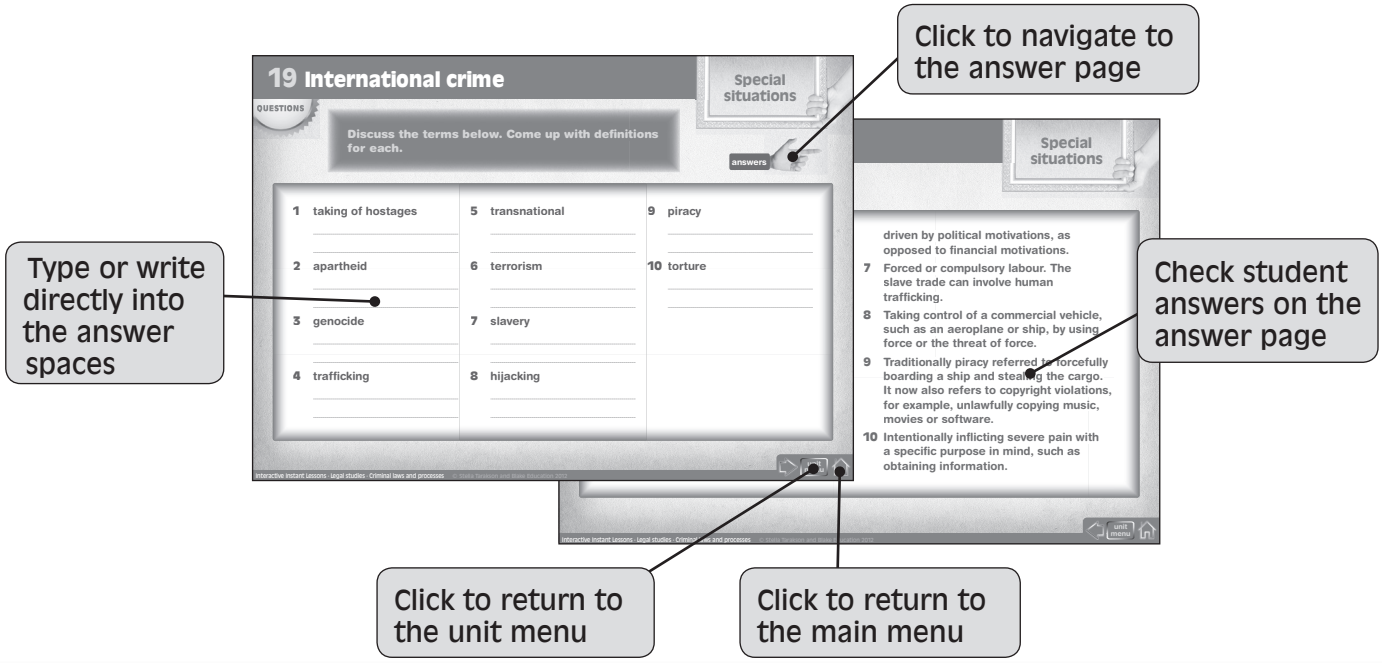
INTERACTIVE INSTANT LESSON

Introduction

- *Explains there are various types of international crime and introduces ways of classifying them.*
- *Students learn about crimes against the international community, crimes that take place in international waters or airspace, and transnational crimes.*

Discussion questions

Discuss each word or phrase, then type or write a definition for it. Compare your answers against those on the answer page.



Work sheets

Consolidate student learning using the work sheets for Unit 19. The work sheets include:

- *a real-life case study about the International Criminal Court (ICC) and the Gaddafi regime in Libya*
- *comprehension and research questions*
- *a find-a-word puzzle that features international crimes.*

NOTE: Suggested web addresses were functional at the time of publication, but teachers should check them for appropriate content and to ensure that they are still functional before use with students.

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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20 Mock criminal trial

Conduct a mock criminal trial using the information in Unit 20. There is no introduction, nor any interactive activities or discussion questions for this unit. The work sheets in the book contain all the information you need.

Work sheets only

The work sheets include:

- *a list of roles for students to play*
- *a case summary*
- *witness statements for five witnesses*
- *information about forensic evidence*
- *courtroom tips.*

20 Mock criminal trial

Now it is time to bring the criminal law to life by running a mock trial. Read the following preparatory material and refamiliarise yourself with earlier material, especially Unit 13: Rules of evidence and Unit 14: Trial procedures. The classroom can be set up to mimic a courtroom (see Unit 9: Criminal courts).

The use of time limits during the trial will ensure everyone has a fair opportunity. The opening addresses are limited to 5 minutes each, examination and cross-examination to 15 minutes each, re-examination to 5 minutes and closing addresses to 10 minutes each.

Roles

Judge

Presides over the court, decides matters of law and rules on the evidence. The judge should be played by the teacher, who ideally should keep notes of the proceedings.

Judge's associate

The judge's assistant. Keeps track of time and ensures time limits for mock trial are kept. Keeps lists of objections made by barristers, as well as the judge's responses to the objections.

Played by: _____

Court officer

Opens and closes court, maintains order. Calls witnesses and administers the oath or affirmation. For example, the witness might say 'I swear by Almighty God that the evidence I give will be the truth, the whole truth and nothing but the truth'. An affirmation is similar but without the religious reference and can begin 'I solemnly and sincerely declare and affirm that . . .'.

Also passes any relevant documents from barristers to the judge's associate.

Played by: _____

Court reporter

Records proceedings, reads back transcript if required. This role can be omitted if there are not enough students; however, it is still a good idea to make a video or audio recording.

Played by: _____

Corrective services officer

Guards the accused in the courtroom and escorts them in and out of the courtroom. Role can be omitted if there are not enough students.

Played by: _____

Jurors

Decide matters of fact and determine whether accused is guilty or not guilty. The mock trial should have 12 jurors if possible, but can have less if there are not enough students.

Played by:

_____

_____

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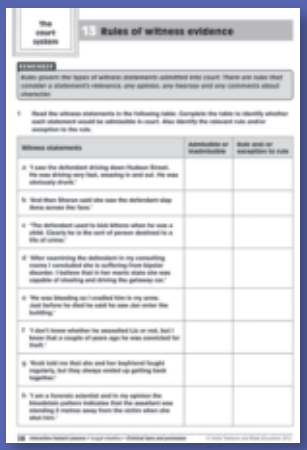
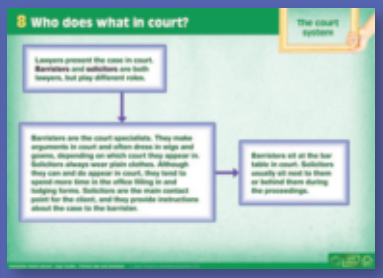
INTERACTIVE INSTANT LESSONS – LEGAL STUDIES
Quality ready-to-use resources

This simple-to-use interactive series is designed for the busy teacher who needs curriculum-specific, interactive instant resources. The series features full-colour lessons for the interactive whiteboard, supported with interactive activities and discussion questions, as well as student work sheets that can be completed onscreen or on hard copy. It is the ideal supplement to your existing resources, and it has the flexibility to be used in a range of learning environments and suits a range of teaching styles.

THE FOLDER CONTAINS

- Quick-reference guides that draw together each element of the lesson
- Photocopiable student work sheets
- A range of real-life and fictional case studies
- Selected answers for easy and efficient marking





THE CD-ROM CONTAINS

- Interactive instant lessons for IWBs and laptops
- Pop-up definitions of legal terms
- Interactive activities to consolidate learning
- On-screen questions to facilitate class discussion
- Interactive PDF work sheets

CRIMINAL LAWS AND PROCESSES includes 19 easy-to-use lessons covering:

- The nature of crime
- Criminal investigation
- The court system
- Sentencing and punishment
- Special situations.

The book also includes a comprehensive brief for conducting a mock trial.

UNITS INCLUDE

- ✓ The mental element
- ✓ The physical element
- ✓ Police investigations
- ✓ Who does what in court?
- ✓ Legal assistance
- ✓ Trial procedures
- ✓ The purpose of punishment
- ✓ Young offenders
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ISBN: 978-1-92571-051-9
9 781925 710519